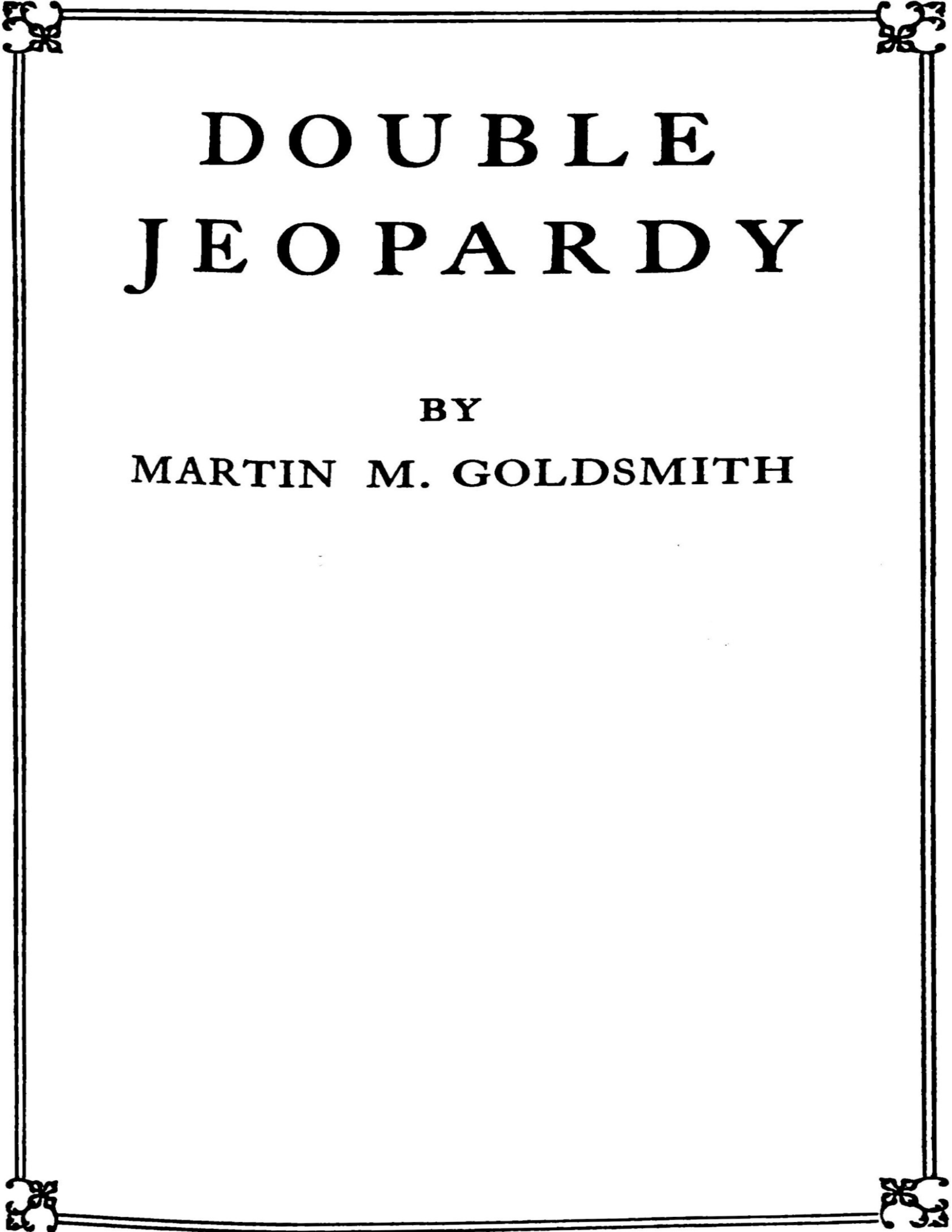
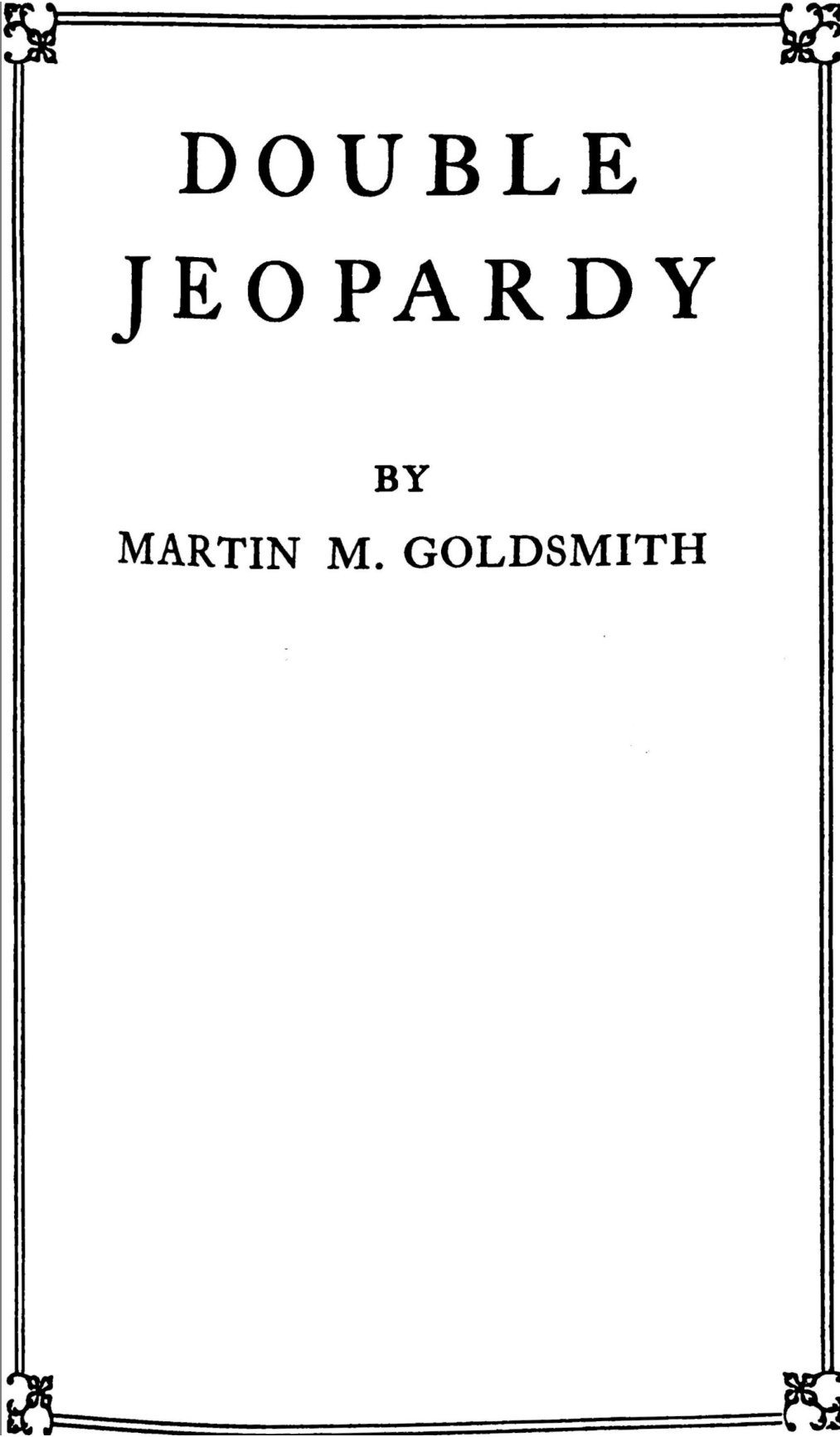




DOUBLE JEOPARDY

BY
MARTIN M. GOLDSMITH



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*** START OF THE PROJECT GUTENBERG EBOOK DOUBLE
JEOPARDY ***

DOUBLE JEOPARDY

BY MARTIN M. GOLDSMITH

**NEW YORK
THE MACAULAY COMPANY**

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To
E. G. G.

**"... And no person shall be subject to be twice put in jeopardy for the
same offence."**

—*Constitution of the State of New York; Article I, Section 6*

CONTENTS

[PART ONE](#)

[PART TWO](#)

[PART THREE](#)

DOUBLE JEOPARDY

Is it possible in this day of enlightened justice for a man to be punished twice for the same crime?

DOUBLE JEOPARDY answers this question, at the same time uncovering the greatest of the many loopholes in our modern jurisprudence. In this very human but striking novel are portrayed the calamities that can be visited upon any ordinary citizen by the cold, dispassionate judgment of our courts and our unimaginative and often stupid juries. Through the eyes of the victim, Peter Thatcher, this tense revelation unfolds, growing to ugly and utterly ridiculous proportions.

"Peter Thatcher has murdered his wife," people said. "I heard them quarreling," announced one. "And I," added another, "saw the blood."

To make matters worse, Thatcher himself could not be quite sure of his own innocence!

Not a problem novel, not a mystery novel, but rather a cross between the two, this thrilling story will be appreciated by those who read "The Postman Always Rings Twice."

PART ONE

THE ROOTS

I suppose it was that five-point-nine that was to blame—or the gunner who fired it; or maybe it was my own fault for lagging behind the rest of my battalion as we advanced deployed through that ploughed-up cemetery; but, somehow, I find myself laying it all before Anita's door. She would never have permitted me to marry her, feeling the way she did. As my mind wanders back over those days long ago I remember that I was certain I would die if she refused me; now I may die because she didn't.

They are going to bury her tomorrow, or so I've been told, and they are holding me responsible for her death. The District Attorney, who visited me in my cell this morning, says that I am sure to get the Chair. But I am not afraid. On the other hand, my own lawyer is confident they will have to let me go free. In the event that he is wrong and they do sentence me to die, it will not matter much. After what I have been through, death no longer presents a terrifying picture. And this is very strange for I have always been afraid to die.

If only I had been born fearless, like Carter or Mullins or Sergeant Wilkinson, maybe all this would not have happened. There is an old saying that Fortune favors the bold. But because the thought of dying and the rattle of machine-guns made me tremble, I crept into a shell-hole and remained there, digging my fingers into the soft earth while everyone else continued to advance.

Practically the entire battalion was wiped out during the next half hour. Had I not broken ranks and hidden myself, protected by the cover of darkness, I would have been killed then and there with my comrades and spared the subsequent nightmare that became my life. I would have died a hero; not a murderer. But, naturally, I knew nothing of what the future had in store for me.

It was while I huddled in that shell-hole that a five-point-nine shrieked close to my head. That is all I can remember until I suddenly came to my senses more than three months later in a small, French hospital forty kilometres from Paris. Little did I dream that that shell would form one of the most important links in a chain of circumstantial evidence which would indict me, try me, and convict me of a crime later to be committed four thousand miles away! A theologian would claim, no doubt, that God punished me for being a coward, and perhaps that assumption is correct. I don't pretend to know. All that I *do* know is that I've certainly been through hell since the war and that if I had known then what I know now and been given the choice either of advancing with the rest and stopping a bullet or lagging behind and living, I most certainly would have chosen the former.

It has always been my custom to hide my unnatural timidity; but here, in this confession, explanation of my peculiar behaviour, or what have you, I have resolved to be absolutely frank and truthful. Since my childhood, any action, sport or utterance of words which might in some way lead to physical violence I have painstakingly avoided. It might have been for this reason that I chose the career of doctor with the altruistic ambition to help alleviate some of the world's suffering. However, after two years of pre-medicine, my widowed mother passed away and I was forced to give up my studies and use the small insurance in the opening up of a drugstore.

It wasn't much of a store, compared with the glittering chrome and steel of modern places. The prescription room was only half the size of this cell from which I write and the little wooden counter, where my errand-boy dispensed bottled soda-pop and ice-cream, was scarcely longer than this cot. But it was mine. I was proud to be its sole proprietor. The first day I was in possession of the place I had a large green and white sign painted:

THE ITHACA DRUG COMPANY

Peter Thatcher

Apothecary

All this was late in 1915, when I was only twenty-four years old, and I suppose that my extreme youth did little toward establishing my reliability as a competent pharmacist. The people of the town—and when I say this I do not mean the Cornell students—a good many of them knowing me from the time I was a little boy, could scarcely have confidence enough to permit

me to compound their oftentimes dangerous prescriptions. My small store would probably have failed in that first year had it not been for old Doc Turnbull who sent me all his work and was instrumental in spreading around town the fact that I, at least, never took a drink during business hours. In this manner he helped my trade, at the same time doing much to damage the reputation of his old-time enemy, Ray Cavender, who owned the apothecary shop on the opposite corner.

Those were comparatively happy days. I was working very hard building up a business and time did not hang heavily on my hands. Also I was single then; my heart was my own and I was not even contemplating marriage. As a matter of fact, women have always awed me somewhat and I have generally avoided them. As a boy I was inordinately shy and whenever a girl schoolmate was thrust upon me as a partner for a two-step, my chums would jeer: "Look at him blush!" Whereupon, sadly, the color was sure to flood my cheeks.

Perhaps it was this shyness that prevented me from having the multiple "puppy-loves" people are always talking about. At least I know, if there can be any satisfaction in that, that I have never been in love, even momentarily, with anyone other than the girl I eventually made my wife. You may be inclined to doubt that I loved even *her*. The press has been very unkind. The reporters I have allowed to interview me did not seem to understand that a man can kill someone he loves and still feel no pangs of remorse. No, I am not sorry I killed Anita. As a matter of fact, I'm not entirely sure I *did* kill her. Theoretically she killed herself and I was merely the instrument that brought about her end.

But I am running ahead of my story. The statements I have just made sound contradictory and until you have all the facts I cannot hope that you will understand.

Just as I manifested no interest in women, women manifested no interest in me. I am not bad to look at, I think. I am rather short but with a good build. I am rarely ill and even now, after many years of deciphering scrawled prescriptions, my eye-sight is perfect. But there has never been anything about me that would attract a girl. I am not very romantic and for this reason my life, up until the time I met Anita, was curiously empty of heart throbs.

I lived all alone in my mother's house. Although I could have made excellent use of the money it would have brought, I could not part with it. Quite a number of times I was approached by real estate investors who offered "to take it off my hands." While their propositions were inviting, I could not imagine myself living any other place. The house was very old, built way back in the Civil War days by my father, and not too large to be comfortable. It was situated on a quiet road lined with great elm trees; and it had a garden which sloped down to the bank of Lake Cayuga. In the summer I used to spend much of my time there after I had closed the store, watching other young people drift by in canoes or bathe on the opposite side of the cove. Their light laughter as they splashed about came pleasantly to my ears and made me feel very contented. Occasionally I thought of the European War as the buzzing of mosquitoes around my head suggested the droning flight of planes. It always seemed strange to me that humans can be social at one moment and fired with the desire to destroy at the next. And as I pondered this paradox of nature I was thankful that I lived in America where there was so little discord.

Some evenings Doc Turnbull would stop by in passing on his evening round of patients and we would talk. I should say *he* would talk for most of the time I merely listened. He was a fat old man with a great mop of white hair and very bushy brows. It was often impossible to see his eyes but they were generally twinkling with good humour. He was not a very cultured person for he was gruff, outspoken and perpetually profane. However, even with his solecisms and epithets there was an uncanny truth in whatever he said. Many of his homely observations which at the time I decried I have since recognized to be correct. If he were alive today, I would write to him and tell him that I have at last discovered his greatness.

"Pete," I can hear him saying, "people never thank you for the truth. They expect you to lie; and if you don't live up to their expectations.... Well, by the Jesus, they tie a tin can to your tail. It's like a woman who asks you how she looks. If you don't praise her ... off comes your head!"

I ventured no comment to this because I had a sneaking feeling what he was leading up to. Grateful as I was to Doc Turnbull, I did not want him telling me how to run my business. I wanted to run it myself.

"That's why you've just lost old lady Cahill as a customer, boy. What? You didn't know you'd lost her? Well, you have. You see, Pete, I've been treating that bitch for almost fifteen years. Treating her for what, I don't know. There ain't really nothing the matter with her except one helluva disposition. She just ain't happy 'less she's got something to complain about. To use one of them new-fangled names, she's a hypochondriac. Why, say, if I didn't hand her a fancy Latin label for all her ailings, she'd up and have that young squirt Carpenter over inside ten minutes. So, as far as I'm concerned, she's suffering from a chronic *omnia gallia in tres partem* complicated by a slight *e pluribus unum*." Doc paused and spit reflectively before adding, "You shouldn't have tipped her off that what I prescribed for her was only a mixture of salt, bicarb and water. She raised hell, I'm telling you. I had to change it to sugar, bicarb and water. And she was so peeved at you for telling her she looked the picture of health that I just know she'll take her trade somewhere else."

I am reluctant to admit that there were other incidents like the one described. At least five or six times I was unwittingly instrumental in getting the Doc in hot water with his patients, not realizing that there was such a thing as being *over-sympathetic*. I was certain that it would make any person happier to know that there was nothing really serious about his or her condition. How little I knew of life! But Doc was always forgiving and while occasionally disgusted with me for being so inept a pupil, he never ceased his frequent visits to my home until after my marriage.

Anita never liked Doctor Turnbull and I am positive he sensed it. After he had gone home, she would very often become abusive. Also, whenever I failed to hang up my clothes or neglected to wipe my feet before entering the house she would accuse me of rapidly becoming "a pig like that Turnbull quack." In the beginning, I tried to put in a quiet word of defense for the old fellow who was my friend, reminding her that were it not for him the drugstore would fail. Soon, though I took to holding my tongue. It only enraged Anita and, being a person set in her opinions, it did little good trying to make her like him as I did. Besides, since I was in love with her, it always distressed me to see her upset. Hence, Doc's visits became fewer, longer intervals elapsed between them, and soon he did not come at all. The only chats I ever had with him thereafter were at the store when I was too busy and he too much in a hurry to linger long.

But to get back to Anita. I first set eyes upon her on April 17, 1917, when business was booming and the nation was infected with war hysteria. You may think it strange that I am able to remember the exact date some twenty years later; but I have in my hand the prescription she brought in to be filled. It was made out to Miss Anita Hunt by Leo Carpenter, M.D., and called for a capsule (terpin, hydrate and codeine) generally useful in relieving a minor chest congestion. I remember that when she passed it over the counter she remarked that she was paying the price for an early swim in the lake.

I will spare you her description. Besides, you have probably seen her pictures in the newspapers and marvelled at her beauty. One of those pictures was taken shortly after we were married so you can see why my heart stopped beating as I looked into her eyes. I think my hand must have shook as I went about the business of filling the prescription. I was infinitely grateful that there was no one in the store who would cry, "Look at him blush!" for I feel sure that I would have dropped through the floor.

I remember that my fingers felt all thumbs as I worked, for her clear voice distracted me. She casually remarked that she had just come to town a few days before and asked me if I knew of any nice furnished rooms. She went on to explain that at present she was stopping at the Colonial House which was far too expensive for her new job at the Knit Shoppe. After I had blurted out the suggestion that Mrs. Michaelson's boarding house on North Tioga was perhaps the place she was seeking, she thanked me warmly, handed me twenty cents for the package and left the store. In my confusion I said nothing. The fact that I usually charged a quarter for the capsules was forgotten. I only knew that the girl was the most fascinating customer it had ever been my privilege to wait on.

I finished the remainder of the day in somewhat of a trance. I vaguely recall having filled a prescription for fat Mrs. Burtleson and removed a particle of dust from Joe Crespi's eye but the rest remains a blank. My record book, which they have permitted me to keep in my cell and which I hope will jog my memory of those days I am trying to describe, states that I sold eight bottles of cough syrup on that particular day, two hot-water bottles, six toothbrushes, fourteen rolls of bandages, and that I filled twelve prescriptions. If I did, I can't remember. But I know that when I sat near the

lake that night and smoked with old Doc Turnbull, I found myself strangely inattentive and, for the first time, glad when he went home.

I was thinking how wonderful it might be for any man to call such a woman "wife." The usual vision of pipe, slippers and soft music on the gramophone, a large dog, the evening paper and Anita darning socks lingered to drug my mind; pleasant pictures even though slightly absurd. I slumped down in my chair and smoked cigarette after cigarette until it was very late. One by one the lights across Cayuga winked out. The faint breeze that had been present all evening gradually whipped itself into a wind. In the elms the night crickets fell silent and only the quiet slap of the ripples on the shore came to my ears.

It was not until after I had sneezed several times that I realized I was catching cold. But more important still, it dawned on me that I was falling in love. I rose from the chair, cramped and stiff, went into the house and took two aspirin tablets before crawling sleepily into bed.

During the weeks that followed Anita became the most popular girl in town. She often came into my store just before closing time in the hot evenings for some ice-cream or a bottle of cool soda. Usually she was with young Doctor Carpenter whom I had known at medical school.

Carpenter was a pleasant enough chap and I rather liked him—despite Doc Turnbull's disgruntled remarks. He was the son of the town's wealthiest realtor whose poor health forced him to spend much of his time away from home at various resorts and spas. Therefore, Leo generally lived alone, surrounded by servants in the big brick house on the Heights. The boy was tall and handsome with a neat blond moustache. It was his habit to finger it whenever he was perplexed. I recall hearing the story that one day he was called into consultation at the request of one of Doc Turnbull's patients. Leo took so long to arrive at the simple diagnosis that the old medico became annoyed. "For the love of God!" shouted Turnbull suddenly. "Will you quit yanking that damned thing and tell the lady her bellyache's an acute appendicitis!" In revenge, Leo spread it about town that old Doc's bedside manners were as comforting as those of a callous veterinary. A feud ensued,

lasting for several months. Then it died as suddenly as it had started and the two merely regarded each other with cold disdain.

Of course it was only natural that Leo's good looks and custom tailoring should make him popular with the town girls and even with the young men. He was the proud owner of a Winton Six touring car, a beautiful \$2800 machine in which he made his professional rounds. In the evenings during spring and summer it was his custom to pack his car with young people and roar away in the direction of the Tompkins Country Club. I say, *in the direction of* because I was never invited along on any of those rides. I am afraid that I was never popular with any but the older people who were my customers and with whom I would sympathetically discuss their various ailments. It may be that I was too serious about myself and my little store; but I did want to succeed and often I would dream of the time when the store would be larger.

You may be sure that I went through considerable agony watching the girl with whom I was in love constantly being escorted by the handsome physician. The more times I saw her in his company the more I loved her and the less attention I paid to business. My regular patrons soon noticed my distraction. Doc Turnbull, with his customary rare insight into human nature, almost hit upon my trouble. "You should soon be thinking of getting married, son," he grunted as he chewed away at his cigar. "We all need the womenfolk, you know. It ain't natural for you to sweat all day in your dope-shop and then go home and cook your own grub. Look around and pick yourself a slave!"

I tried to cover up my embarrassment by offering the jocular comment: "And be hen-pecked like you? Not on your life!"

Turnbull winced. "Oh, a man can be happy," he insisted, "even though he *has* got a wife. That is, provided he knows the formula for marital bliss." He paused, waiting for me to express the desire to hear this formula but I am afraid my mind was wandering again. "Up to forty, double bed; forty to fifty, single beds; fifty to sixty, separate rooms; above sixty, separate homes."

I laughed at this and asked him how old *he* was. "Me? Oh, that's for those who can afford it. You can't get rich shoving pills down people's throats ... unless you've got a tricky moustache."

Hurriedly, I changed the subject. I did not want him to start discussing Carpenter. It might lead to mention of Anita. It had somehow leaked out that they were already engaged and rumor had it that they contemplated an undelayed marriage.

In a small town a drugstore is invariably the center of gossip—barber-shops running a close second—and I am sure that I was the most informed person in town. I was always the first to know things and very often people would ask me questions about what so-and-so intended to do. Not wishing to be involved in the spreading of malicious gossip, it was my policy to look innocent and even surprised that they expected me to know.

To the remarks I overheard concerning Anita and Dr. Carpenter I took little heed. It would never do for anyone to suspect my own interest in the girl. Folks might laugh or guy me about her. Besides it might get back to Anita. So I contained myself as best I could and tried to dismiss the remarks casually. In this, I pride myself on being successful. Up until the day I married Anita before the Justice of the Peace no one uncovered my true feelings.

One Saturday afternoon Leo and Anita were in the store and fell to quarreling. I can't remember how the argument started exactly but it became more vigorous as the minutes passed until I felt embarrassed witnessing it. I retired to the drug room, hoping that a customer would come in so that they either would have to cease their quarrel or continue it some place else. From what I overheard I gathered that Anita wanted to attend some party or other and Leo did not. This seemed to me to be a trivial cause for a scrap but, at length, Anita stamped out of the store, slamming the screen door viciously behind her. Leo remained where he was.

As I came from the back, carrying some packages of supplies to explain my disappearance from the scene of the dispute, Leo made the remark: "Well, if that's the way she feels, to hell with her!" Then he turned to me. "Aren't women the limit, Pete? Treat them nice, and the first thing you know they think they own you!"

From that time on, I am afraid I entertained the notion that Leo was not in love with her; and that if she was capable of ranting at him the way she had, the affair would not last long. I did not know then that passion plays strange tricks on people. I did not know that the ones who hate hard, love hard.

The following day I learned that Anita had gone to the party unescorted and, although the weather was too cold to be suitable, had taken a swim. To my disappointment, I also learned that they had made up later on and had driven off in his car for the remainder of the evening.

Indeed, the graph of my hope was erratic; first up and then down as weeks rolled by. Whenever she would come into the store to purchase some item she would smile pleasantly and direct at me only those impersonalities which had to do with the temperature or the weather. Only once did she say, "And how are *you* today?" Fearful that in a moment of weakness I might let slip something which would give me away, I retreated behind my best storekeeper's manner.

The opinion might be formed by this time that I am something of a stoic and, except for one instance which I set down at this point, I think I did rather well in concealing my love. But I could scarcely keep myself from vaulting the counter and striking Doctor Carpenter the day he walked into my store and requested that I sell him a certain article which, I had no doubt, he intended to employ in wooing the woman for whom I yearned. Naturally, I did no such thing. Instead, I controlled my temper and curtly informed him that I was completely sold out of what he wanted. I think he looked at me in a puzzled way. My tone, I suppose, was quite the reverse of the usual deferential manner I adopted when speaking to customers.

In that the doctor weighed fully twenty-five pounds more than I did, and was well respected as an amateur boxer, you may draw the conclusion if you like that I controlled myself because I was afraid of reprisals. Carpenter was not the type of man to permit himself to be struck without retaliating. But the truth of the matter is that at the moment I was too enraged to think of what bodily harm any such action on my part would involve. I held myself in check only because I knew it would give me away.

Through the plate-glass window, I watched the doctor cross the street and enter Ray Cavender's place, proceed to the back of the store and emerge a few minutes later putting something into his vest pocket. I felt sick to my stomach and a little dizzy. I locked up the drug room and, when my errand-boy returned from a delivery, I ordered him to take charge of the place for the rest of the day.

The following events which immediately preceded my marriage seem now to have happened with incredible swiftness but I imagine the days must have appeared intolerably long at the time. My prescription record informs me that on June 28, 1917, I began to make myself sleeping powders out of mild opiates. Since I am usually a sound sleeper, this suggests that I tossed and turned on my mattress as my mind tortured me by conjuring up visions of Anita in the arms of my rival.

It was Mrs. Michaelson, Anita's landlady, who first brought me the news that Anita and Carpenter had set the Fourth of July as their wedding day. My heart sank when I heard this. In despair I tried to persuade myself that it was merely a rumor without the slightest foundation of fact. To more or less substantiate my theory, Henry Liscombe, the County Clerk, who frequently patronized my store, had made no mention of issuing a license to the couple and Henry was the town's most garrulous individual. That night, however, I learned to my dismay that Anita had quit her job at the Knit Shoppe, telling her employer that she was going to be married.

As I was locking up on the evening of July 2nd I again encountered Mrs. Michaelson. Being something of a pet of hers from the days when I helped her carry bundles from the fruit stand (where I used to work during summers) to her buggy, she was accustomed to confide in me many interesting tidbits concerning her lodgers. So it was not without precedent that she related to me, almost verbatim, the terrible scrap that had taken place between Anita and the doctor in her back parlor.

"When he showed her the telegram, Peter, I thought the roof would come off! She was that mad! I was in the dining-room, mind you, setting the places for supper. I couldn't help overhearing the whole thing!"

That the Michaelson dining-room was immediately adjacent to the back parlor, I was well aware; and she could very easily have retired to the kitchen had she so desired. But, of course, I did not suggest this to her. I was only too grateful for any news which had to do with Anita's plans.

"Never in all my born days did I see a body so unreasonable," went on the old lady. "Here's that poor boy Leo with a telegram saying that he'd better hike himself out to Phoenix right away if he wants to see his father alive;

and here's that Hunt baggage insisting that they *both* go ... after the wedding, of course! Well, Leo minced no words, I can tell you! He said: 'That would be nice, wouldn't it? Having a honeymoon while my dad's dying. I'm sorry, Anita. We'll have to postpone getting married until I come back.' At that she flies completely off the handle! But c-o-m-p-l-e-t-e-l-y! 'If you run off now without taking me, after I quit my job and told everyone I was getting married on the Fourth, you can stay away forever for all I care!' Well, Peter, to make a long story short, as I've got to get back to the house and see to it that that hired girl's cleaned up the kitchen before sneaking home, Leo turns on his heel and leaves her standing there. They were supposed to go out somewhere, too. I don't know if he'll go through with his trip or not but there's a train out to New York tonight at nine and if he isn't aboard it, I'll be mighty surprised!"

Mrs. Michaelson hurried off down State Street, little dreaming that she had caused a great jubilation to well up within me. My mental scoreboard chalked up another point for my team.

That same evening after I had cooked and eaten my solitary meal, I decided to take a little stroll. It had been very warm all day but, with the going down of the sun, a welcome cool descended, bringing me renewed energy. This was rather a phenomenon because I usually felt totally spent after ten hours on my feet, and walking, whether in the evening cool or not, was an activity it was my habit to avoid. Nevertheless, on that night I found myself irresistibly drawn to the railroad station.

Arriving there, I lingered in the shadows of the closed freight warehouse, my attention riveted on the lighted interior of the waiting-room. I looked at my watch. It was ten minutes to nine. I was badly in need of a smoke but I did not want to risk revealing myself to anyone who might happen by. From where I stood I could not of course see the lights of Ithaca's famous crescent but the Trumansburg road rose in a steep, broken line of lights, reminding me, for no apparent reason, of Jacob's ladder. A west-bound freight, probably going to Buffalo and Chicago, thundered past. The headlight of the locomotive rested upon me for a brief moment and then flashed away.

Soon I was rewarded for my patience. Doctor Carpenter stepped out of the waiting-room and onto the platform, carrying two satchels. Far up the track the whistle of a train came faintly mournful to my ears. I looked around for

some sign of Anita. I could see none. If she was there, she must be still inside the waiting-room. The two pieces of luggage, though, were a bad omen. Moreover, the doctor kept turning his head this way and that as if he expected someone.

Soon the train ground and hissed to a stop. A porter descended and lifted the two bags into the Pullman and as the conductor cried, "All 'board!" and waved a signal to the engineer, the doctor reluctantly climbed up as the train gathered speed.

Well! No words of mine can express how elated I was! I could have sung and, strangely enough, that is exactly what I did do. My voice, at best, has never been much more than a nasal groan which, as it increases in volume, gets worse. As the train disappeared in the distance, its red tail-lantern shrinking smaller and smaller until it could no longer be seen, I let loose my joy with such fervor that every person within a mile of the station must have been seriously alarmed. I remember the station-agent came out onto the platform and recognizing me asked: "What's the trouble, Pete? Ya sick?"

Of course I recalled that Carpenter and Anita had scrapped before and had made up within a few hours. But this, I hoped, would be a permanent rift which they would never allow their prides to bridge. While my own suit was in no way furthered, at least I knew my most formidable rival was temporarily out of the picture, leaving the field clear. It was now up to me.

But how? I had never had any great experience with women and, except for one or two occasions at medical school when, in the company of some classmates, I visited a house of ill repute, absolutely no intimate relations with them at all.

This problem occupied my mind that night as I returned to my house and took up my usual position near the lake. That I could never be happy without Anita had long ago impressed me; and I knew that unless I worked fast the doctor might return and make up with her. Yes, or she might become infatuated with someone else. There were so many nice young men in town, business people and wealthy students from up on the hill. I wondered at my conceit in hoping to succeed.

Fortunately, the problem solved itself without my having to devise any schemes by which she would fall in love with me and consent to a marriage.

And the very night that marked Doctor Carpenter's departure from the scene marked the fulfillment of all my dreams.

I must have dropped off to sleep in my deck-chair for several hours on that night of July 2nd; for when I opened my eyes the absence of any lights across the lake made it obvious that midnight was a thing of the past. I felt refreshed after my nap and, as my mind awakened and became conscious of what had transpired earlier, I felt even buoyant. Despite the fact that I would have to be at the store earlier than usual the next morning to receive a shipment of fireworks, I decided not to turn in. I was not the least bit sleepy and anyway I wanted to think.

But on my back porch I had left a light burning and it annoyed me. Although my back was to it, the yellow glow coming over my shoulder seemed to intrude upon the welcome comfort of the darkness. The night was unusually dark for that season of the year. The sky was a vast expanse of mourning veils, uncontaminated by a moon or even by stars. And the air was almost cold.

Over Cayuga the wind seemed to moan the syllables of the lake's name and the rustling leaves of the trees sounded like the applause of some vast audience. Even with these noises, I got the strange feeling that it was quiet.

Always having been an ardent admirer of Nature and never having failed to be impressed by each and every one of her miracles, I am also sadly ignorant of her—like most people. I have never been able to remember the names of stars or trees or to distinguish types of birds; but I have always appreciated their beauty and often thought how strange the world would be if there were no such things. At the moment, however, even Nature could not force her way into my thoughts, occupied as they were with Anita and the baffling problem of winning her.

As I was about to extinguish the porch light, I was startled by the sound of splashing in the lake. I left the light burning and made my way to the shore. Something was emerging from the water. I could not make out who it was or even if it was a human. At first I fancied it might be some dog belonging to a neighbor.

"Who's there?" I called, feeling very silly.

I was rewarded by a groan of relief. "So you've awakened at last, have you? I've been paddling around for over an hour! Didn't you hear me call?"

The voice shook me and I fumbled in my pockets for a match. I might have spared myself the effort because I recognized her voice instantly. The match flared and before it flickered out, burning the tips of my fingers, I saw that she was in a bathing suit and shivering with the cold.

"Miss Hunt!" I gasped.

"That's right," she replied, her teeth chattering. "And whoever you are I'm sorry to have got you out of bed. I'm afraid I lost my bearings in the dark. Am I anywhere near town? Lucky I saw your light."

I struck another match so that she would recognize me. Needless to say, this unexpected visit seemed most portentous and left me temporarily tongue-tied. Of all the persons who might have been swimming in the lake, it had to be Anita! And of all the places she might have come ashore, it had to be at my own landing! I almost began to believe in God.

Now when I look back on it I can only regret that she came that night. If I had not left that light burning, in all probability she would have drowned or landed at some other point. In any case I am certain we would never have been married and the marriage, I reiterate, was the direct cause of my undoing.

"I'm Peter Thatcher," I managed to say.

"Yes, of course. I know. The druggist man."

I became suddenly aware that her mouth was blue with the cold and that her arms were goose-flesh. "Will ... will you come inside, Miss Hunt? You've got to warm yourself or you'll catch your death of cold. I ... I live alone here," I stammered apologetically as an after-thought.

As I uttered this, I was sure she would refuse. Ladies did not visit bachelor's homes unchaperoned in the dead of night.

"I was waiting for you to invite me in." And she accepted my invitation with a celerity that was not surprising when you saw how chilled she was.

"I was only thinking of the proprieties." I removed my Norfolk jacket and placed it about her wet shoulders—not without misgivings because the shirt I was wearing was rather shabby and none too clean. She murmured her thanks.

"Proprieties? I'm only interested in something warm."

"Watch out for those sharp stones," I warned her. "You'll cut your feet. I've been promising myself to clear this beach for years but somehow I never got around to it."

Guiding her with a hand on her bare elbow, we soon reached the house. I led her around into the living-room. "If you'll wait here, Miss Hunt, I'll run upstairs and find you some towels and maybe something to warm you up inside. I'm afraid that there are no logs for this fire-place but ... but it might be warmer in the kitchen if I light the stove." I remember that I felt ashamed to suggest that. In those very formal days one did not entertain their guests in the kitchen. Now, I understand that parties are given in attics, cellars, kitchens and even in hotel bedrooms. Such affairs twenty years ago were almost unheard of.

But Anita smiled reassuringly. "O, let's do go into the kitchen. I'll be lighting the stove while you fetch the towels."

I must confess that I am not much of a housekeeper, and during the years I lived alone, my place was generally very untidy. It was my custom to hire a scrub-woman on the first of each month to do a thorough job of hoeing out. Frequently, by the end of the month I would find myself without a clean dish to eat from and all of my towels black with shoe polish. Therefore I was infinitely grateful that this was the *second* of the month. With everything in good order the little house was very presentable and I know that Anita was delighted with it.

I changed my shirt while I was upstairs before I did anything else and then I combed my hair. Besides three fresh towels, my best bathrobe and a pair of slippers, I also unearthed a bottle of rare brandy which I had set aside for some state occasion. I have never been an habitual drinker of hard liquor, being partial to beer and light wines; but I thought a glass or two of brandy might do her good after her cold swim. Then too I was hoping that the spirit

might loosen her tongue and put us on more intimate terms ... make us friends.

This accident of Fate, I realized only too well, could never happen again. Therefore I was determined to make good use of the opportunity and not sit there like a ninny, uttering asinine generalizations and getting nowhere. I knew that I must make that night the key which some day would open the door of her heart to me.

I hurried back to the kitchen. Anita had the stove going full blast and already it was comfortably warm. She thanked me for the towels and without further ado, fell to rubbing herself vigorously. As she removed her rubber cap (which I at once recognized as part of my merchandise) her lovely yellow hair cascaded down her neck and shoulders. I had never seen her this way before and she looked so unspeakably beautiful with her hair unbound that I could not withhold an exclamation of delight. The urge was strong in me to cast aside all restraint, to take her in my arms; but she was my guest, at the moment helpless, so I refrained. Besides, the inhibitions of civilization are hard to break through. Seldom in my life had I given way to impulse. At the moment, however, I had to summon the full force of my restraint.

She flashed me a quick glance and for a moment I thought she would be angry. I cursed myself silently for a fool. But, instead she laughed and said: "Turn your back. I want to get out of this wet suit."

"Wait," I cried. "I'll go, if you like."

"O, don't bother. I trust you."

I turned around to face the wall and heard the crisp snap of elastic and the rustle of heavy taffeta. It gave me a pleasant sensation, her saying that she trusted me. It proved that she considered me something more than a chance acquaintance. There was also a breath-taking joy in the knowledge that we were in the same room together while she engaged in the intimate task of drying her naked body. My honorable intentions were somewhat frayed and stretched to the breaking-point. For this reason my voice sounded somewhat high and excited as I spoke to the wall, striving to appear casual and completely at ease. "I'm afraid I haven't much to offer you in the way of

refreshment," I said, "except that brandy on the table or some tea. I never drink coffee."

"Did you say brandy? Lead me to it! You can turn around now."

As I obeyed, I started to say, "It's not very good brandy." I never finished the sentence. That first glimpse of her in my bathrobe—I'll never be able to forget. The robe was dark blue, matching her exquisite eyes; and her hair, tumbling down it.... But I have resolved not to go into raptures. I am sure that she noticed my appreciative stare for all the time we sipped away at our bandy I felt her eyes on me.

Thirty minutes passed. "Perhaps you're hungry?" I suggested.

"Famished! I could eat a horse."

"Well, I haven't any horse," I told her, "but if you like...."

Later, over bacon and scrambled eggs which she had insisted that she prepare herself, I summoned up enough courage to say: "But you haven't told me how you happened to be swimming so late at night. The water was certainly too cold for you to have enjoyed it."

A slight shadow flitted across her face. "I always go swimming when I'm angry. That's the only way I can get it out of my system. Cold water does wonders to my awful disposition!" She tried to laugh convincingly. Of course she did not suspect that I knew what was wrong. And I never told her that I had heard she had quarreled with Doctor Carpenter.

"I don't believe it!"

She looked up at me with a frown. "What? That I go swimming every time I get a grouch on?"

"No. That you've got an awful disposition."

She seemed pleased at that. "Oh, you don't know me yet!"

My heart thrilled at the "yet."

"My misfortune," I returned, feeling that I was talking like some hackneyed, if gallant, character in a cheap novel. "But how do you manage in winter?"

"Oh, I don't, really. You see I'm from the South where you can get angry as often as you like without catching pneumonia or bunking your head on a

cake of ice."

That got us onto the subject of her past life. I found out that she came from Florida—Palatka—and had come North after her father died. "But you don't sound like a Southerner," I said. "I haven't noticed the slightest trace of an accent."

"Why should I have?" she retorted. "My dad was an English teacher in the Palatka school. What do you think? Only Yankees can speak the King's English?"

Lest the Civil War break forth anew, I changed the subject.

Another hour flew by. I scarcely realized the passage of time. By virtue of the four fingers of brandy I had consumed, I had grown more bold and I was commencing to call her by her first name. She, sadly, did not reciprocate. I remained, as far as she was concerned, nameless. But this was better than being addressed as "Mr. Thatcher."

We had discussed at some length the matter of her getting back to Mrs. Michaelson's and had arrived at the decision that she had much better wait until morning. I owned no car and she could not possibly walk that long distance through the streets clad only in bathing costume and wearing my slippers. Furthermore, it would not be right to awaken Mrs. Michaelson at this ungodly hour of the morning and ask her to wrap up one of Anita's dresses. Therefore, it had been agreed that we'd sit up the few remaining hours until daylight, at which time I would pay a call on Mrs. M.

To my way of thinking, Anita proved herself to be a very good sport in her predicament. Should anyone find out that she had been in my house the entire night, clad only in my bathrobe, a dreadful scandal was sure to follow, and her name, as far as Ithaca was concerned, would be ruined. Nevertheless, Anita maintained a sublime indifference to this possibility ... and even a reckless disregard for the accepted conventions. I must admit that this rather surprised me. I had not thought of Anita as daring.

I remarked that I was spiritually drunk that evening; I am loathe to admit that that was not all. I also become quite drunk with brandy and, I am afraid, so did Anita. As I have explained earlier, I am not accustomed to hard liquors and, in congenially keeping up with my pretty guest, I soon felt my tongue thicken and my head begin to spin. Although my faculties dulled

with the alcohol, they did not take leave of me completely and I can remember the events which took place between the time Anita splashed into my life and the moment I first took her into my arms. However, if some of the moments seem vague in description, you may put it down as a combination of too much drink and too many years having elapsed since. But to me, this night stands out with absolute clarity. It was the happiest night in my entire life.

Now nobody respects a drunken woman. Hence, I had better remind you that Anita had every reason to try to drown her sorrows that night. Besides, she did not look or act drunk ... except that she cried continually. But her face did not grow red and ugly, and this is funny because I have since witnessed many of Anita's tantrums and she certainly erases her good looks with her tears.

"I hate him! Oh, I hate him!" she kept muttering between racking sobs.

I tried to comfort her as best I could but my soothing words seemed to pass unnoticed. As she babbled on, I found myself unconsciously hanging on her words. I wished to plumb her depths, learn her true feelings. While I recognized that she was not herself and might easily say something she would later regret, I was afforded the delicious sensation of hearing her denounce Leo Carpenter. Her very vehemence as she spoke his name began to infect me. I commenced to hate him, too.

Previously I had regarded his attentions to Anita only with jealousy and distaste; and except for that day in the store when he had tried to induce me to sell him a contraceptive, I harbored no great hatred for the man. After all, he had never been anything but friendly to me and, I daresay, had he suspected how I felt about Anita, he would not have come into *my* store on such an errand.

Anita's wrath seemed genuine enough and I had no suspicions but that she really despised the man. Had I not been so happy that her love for him had died, I think I would have been a little alarmed at her capacity for enmity.

After her rage had exhausted her and had subsided into dry, body-racking sobs, she leaned forward on the kitchen table with her head buried in her arms. Before her, like some grisly tombstone, stood the empty brandy bottle. She had wrapped the bathrobe so tightly around her body that every

line of her form was clearly defined. Through the thin material her breasts showed. They quivered an accompaniment to her choking convulsions.

I moved over to her and stood behind her, stroking her head soothingly as though she were a little child. I put an arm around her shaking shoulders and whispered that it was all right, Carpenter was gone and she would never have to worry about him again. My words, this time, took effect. But not in the way I intended. She began to feel sorry for herself. Wave after wave of self-pity swept over her until she was repeating that old, familiar masterpiece of spoiled children: "Nobody loves me!"

I wanted to do something—I don't quite know what—to reassure her. I wanted to pour out my love for her all at once and take the consequences. But ... no words came and I found that I couldn't galvanize myself into any action. Finally, I managed to sink to my knees beside her chair and raised her head by tugging at her shoulders. The bathrobe came loose, much to my dismay, and I caught a glimpse of one curved thigh. With her face between my palms, I looked into her wet eyes and said: "You're wrong, Anita. Somebody does love you."

I don't think that she heard me. If she did, she gave no sign. She continued to sob with her head against my chest and I pressed my lips to her forehead, her cheek and then at last I kissed her mouth.

It may appear disgusting that I should make love to a drunken woman, too befuddled with alcohol to fully realize what was being done to her. But remember that I was drunk myself. Even with this excuse, I am quite ashamed to confess that my marriage was born in such a fashion. You can readily understand why I have kept it a secret until now.

I vaguely recall lifting her in my arms and carrying her up the narrow winding stairs to my bedroom. And she must have been nude, for the next morning I came across my bathrobe lying on the kitchen floor.

Not wishing to delve into intimate details which normally should be discussed only between the parties concerned, it would definitely be misleading if I neglected to mention that when we eventually sobered up, Anita did not appear so very horrified upon finding herself in bed with me. On the contrary, she seemed to accept it as a matter of course and, had I had

any regrets for my actions before she became sober, they swiftly took wing at her warm responses to my wooing.

I became thoroughly convinced that she had fallen in love with me. Moreover, if her mind was still filled with resentment because of Doctor Carpenter's desertion, at least she did not mention his name again.

When I returned to the house before ten that day with a bundle of her clothes, Anita was still in bed and sleeping soundly. The covers were tucked tightly under her chin but one arm, round and very white, dangled over the side. I stood and looked at her for a long time, scarcely breathing. I could not believe that such a thing had come to pass, that I, Peter Thatcher, had possessed the one woman in all the world.

It was my plan not to awaken her. Since she no longer was employed at the Knit Shoppe, there was no point in getting her up. But as I deposited her clothes at the foot of the bed and turned to tiptoe out, she called to me.

"What time is it?"

I whirled around and noticed that while she was certainly wide awake, she was keeping her eyes tightly shut. I suppose that she did this out of embarrassment.

"Ten o'clock, Anita," I stammered. When she said nothing further, I went on, "Is ... is there anything I can get you? Some ... some tea? There's no coffee in the house."

"No thanks. Nothing at all."

"I've brought your clothes."

"Thanks. I'll get up in a minute."

"Oh, there's no great rush," I hurried on to say, lest she think that I wanted her to vacate the premises which, you may be sure, was not my wish. "Stay as long as you like. I.... It's nice having you here."

"Thanks."

I did not get to the store before half past ten that morning and furthermore I didn't care. The place did not seem a bit attractive to me and I did something that day that I had never thought of doing before. I watched the clock. My errand-boy, a colored chap by the name of Jiggs, remarked on

my obviously distracted manner. "Boss," he said, "you sure look like somethin' shot at and missed, you do. Yes, sir!"

At five o'clock Anita made an appearance. I had half expected that she would come around to the store. I couldn't think of any reason why she should but.... Fortunately there were no customers present and I immediately dispatched Jiggs on some needless errand so that we might have privacy while I proposed to her.

"Anita," I said after several false starts, "I want you to be my wife."

I remember that she looked rather haggard and worn. There were faint lines around her lovely eyes. I waited breathlessly for her to give me her answer.

"Why not?" she sighed. And while the tone she employed struck me at the time as being somewhat unenthusiastic for one who was in love, I put it down as just another sign that she had spent an enervating night.

We were married quietly on July 4th. I, myself, would have selected another day but she would have none of it. "I planned on getting married on the Fourth and the Fourth it shall be." Seeing how set she was in this whim, I raised no objection although I did not like the feeling that I was stepping into someone else's shoes. All through the short ceremony I half expected the name Leo to slip from the Justice's tongue instead of my own.

I am not at all a superstitious person. Black cats and ladders and the numeral 13 mean nothing to me. But in retrospect, marrying Anita on the Fourth with firecrackers exploding out of doors and *Times* headlines reading: VICTORY FOR OUR NAVY IN 2 BATTLES, U-BOATS TWICE ATTACKED OUR TRANSPORTS, OUR WARSHIPS SANK ONE, PERHAPS MORE, seems quite in keeping with the turbulent events that ruined both our lives.

I can recite the contents of that newspaper, *The Times* of July 4, 1917, almost completely. You see, some practical joker phoned in the news of our wedding, making it sound so important that it was printed on the Society page. Mr. and Mrs. Peter Thatcher were not really "news" then. Now they are—only not Society news. Murderers and their victims rate much more

space. Anyway, on July 4th President and Mrs. Wilson went yachting as far as the mouth of the Potomac, Herbert Hoover warned the public through the medium of the press that "America Must Save to Win War," Gimbels advertised a Clearance Sale of ladies' parasols, and I married Anita.

No sooner had the ceremony ended, it seemed to me that Anita began to make changes. I suppose all brides do that. I guess they like to have some physical evidence about that by the token of marriage they are effecting a radical metamorphosis not only in their husbands' lives but in his effects as well. For several days following Anita's moving into the house I stumbled over pieces of furniture which she had rearranged and I felt very strange sleeping in what had always been my mother's bedroom. After her death I had never thought of bunking there but had kept my familiar little room at the head of the winding stairs.

"Don't you think that this table would look better over by that window?" she asked.

"Oh, yes, Anita," I would reply.

"No.... I guess not. I'll try it in that corner."

"It looks fine there, Anita."

"Well, it will do for now."

On one or two occasions I kissed her while we were shifting the furniture back and forth. Despite the dustcloth wound around her head, the old house-dress and a pair of my slippers which were ludicrously large on her feet, she looked very beautiful and I couldn't resist taking her into my arms. However, when I did my best to maneuver her onto the couch, she would push me away gently. "Oh, please, Peter! We're so busy and I'm so tired."

I think that only a few weeks elapsed between the day we got married and the day I rented the vacant bakery shop adjacent to my store. I had made up my mind to celebrate my good fortune by enlarging the business. Soon the workmen were at work, tearing down the thick wall separating the two shops and while this was going on I could not conduct business. So it was decided that Anita and I would take a belated honeymoon. I suggested Montreal but Anita had ideas of her own.

"I want to spend all the time we can allow ourselves right in New York City. We can go to the theatre every night and eat in the fine restaurants and shop and...." She rambled on and on, becoming more enthusiastic. When I reminded her that New York in summer was scarcely the spot one would select for a vacation, she refused to listen.

Luckily my finances were in good shape so we stopped at the Waldorf. For two weeks we were miserable. The pavement and the walls of the high buildings surrounding us were unbelievably hot that summer and it seemed to me that we were slowly being baked in some great oven. Nevertheless, Anita did not complain and tried to pretend to me that she was enjoying herself.

Every night found us in some stuffy theatre or cafe. We went to the Ziegfeld Follies; we sat through "Hitchy-Koo," gasping for a breath of air while Raymond Hitchcock, Grace LaRue, Leon Errol and Irene Bordoni panted their speeches; but after a matinee of "The Thirteenth Chair," when Anita expressed the desire to inspect the new William Desmond film—"The Paws of the Bear" I think—I emphatically refused. She sulked all evening.

The trip itself would be unimportant had it not marked the birth of Anita's yearning to live in New York. She did not suggest that we move there—in so many words—but I was soon to note her waning interest in the alterations I was planning to make in the store. While I was down in the city, I ordered a very fine composition-marble soda fountain and I was justly proud of my purchase. However, when I insisted that Anita accompany me to the showroom to view it, she was totally lacking in enthusiasm.

"It's right down on Fourth Avenue, darling. We can hop a cab and be there in five minutes."

"I'll see it when it's up in Ithaca, Peter."

Upon our return home, I lost no time in getting to the store for I wanted to see what progress had been made in my absence. It was still my dream some day to own a very large place—an elaborate place with a long fountain and red-leather stools and a well-stocked drug department with several clerks in white coats to wait upon customers.

After a cursory inspection, I started home again. Anita had warned me about being late for supper and I had lingered quite a while with Doc Turnbull whom I had chanced to encounter. I hurried along down State Street at a good clip.

It was already growing dark as I passed the railroad station. The lighted windows of a halted Pullman stretched like a string of yellow beads far down the track. The train was preparing to creep out, bound west; its engine snorted at ever decreasing intervals. The few passengers who had alighted passed close to me, sweating beneath their burdens of satchels and valises. They were all headed in the direction from which I had come.

"Travel," I chuckled to myself, "is not all it's cracked up to be. Moving all the time, packing and unpacking, sleeping in cramped quarters, trying to keep the dust out of your eyes and ears.... They can have it. I'll stay here."

One of the passengers looked very familiar and as he approached me he saluted me with a cheerful wave of his hand. I squinted in his direction.

It was Leo Carpenter.

You can imagine what conflicting emotions took possession of me as I continued toward home. Since my marriage I had not thought of him, so busy was I in accustoming myself to a wedded state. Leo was something out of the past—a smoked cigarette, a match which had flared for a minute and then been extinguished. And while Anita, of course, had not forgotten his existence, I was certain that she had dismissed him from her thoughts. That she no longer cared for him, she had proven to me by the solemn act of marriage.

Yet, because we lived in a small community, we would have to rub elbows with him often. It was a delicate situation and I was at a loss to know the proper attitude to adopt. That Leo and Anita had been engaged was common gossip; if we avoided contact with him it would seem as though we were afraid of him. On the other hand, if we accepted him as a friend and allowed him to call at our home, there might be malicious rumors

circulated that he still loved her and intended, if he could, to win her away from me.

Naturally I expected Anita to bear him a grudge and refuse to have anything to do with him, but when I informed her that I had seen him, she evinced no anger. Indeed she gave no sign that it mattered one way or the other except that her hand shook a little as she cut me another helping of pie. She offered no comments. Neither did I ask her for any. Anita, I reasoned, would be capable of deciding what course to pursue. As for myself, comfortably assured of my wife's devotion, it did not matter how we treated Carpenter.

There were two reasons, though, why I wished we could be friends with him. First of all, I felt sorry for the fellow. He had lost what I had won. Then, too, there was the store. Doctor Carpenter was a very good customer. Like old Doc Turnbull, he brought me all his prescription work. That trade alone netted me five hundred dollars a year and, in the event that Anita decided to feud, he would be forced to trade at Cavender's.

The evening after his arrival he came into the place. I could see by his face that the news had reached him. He looked pale and tensely drawn and not at all the dapper man-about-town. Of course our marriage might not have been the cause of it all. He was in mourning clothes. I remembered about his father being ill.

He came straight to the prescription counter with his hand outstretched. "Congratulations, Pete," he said quietly. "I wish you all the luck in the world. I know you'll make her happy."

I hardly expected that he would be such a good sport about it. In his place I knew that I would have been absolutely miserable. But then I remembered that he had never loved her—or so it had struck me. "Thanks, doctor. You bet I will. I suppose it was something of a shock to you, eh? So sudden and all that!"

"Yes. But that's the way things happen, you know. Suddenly."

I looked at his black suit. "I'm sorry to hear that your...."

He interrupted me before I could get any farther. I could see that he wanted to change the subject. "Hmm. Store looks nice, Pete. But what are you going to put in that big empty place?" He indicated the long, bare strip where I intended to install my fountain when it arrived.

"Secret, Doctor Carpenter. Come in next week and see for yourself."

But he never did see it. Within a week, Carpenter closed up his big house on the Heights, dismissed all the servants, recommended Doc Turnbull to many of his patients, and enlisted in the army. Although I enlisted shortly after, I never saw him again until a few weeks ago—September 9, 1937 to be precise—in his handsome New York City residence.

I bluntly admit that I am cowardly by nature; yet, despite this, I was not drafted into the army. I volunteered. This is not a boast but a statement of fact which, I presume, sounds paradoxical. But I have met many like myself at the front who, listening to martial music and the stirring speeches of wartime orators, could not resist rallying to the colors. During many a night in muddy French dug-outs I wondered at this rash act of mine. Volunteering had been so unlike me. At length it dawned on me that I had done it to impress Anita.

This seems to me to be the most logical reason because I have always tried to impress her. I would never have dreamed of confessing my timidity to her and, if she were still alive, I would not be confessing it here. I remember that whenever a situation arose which required firm handling, in her presence I would handle it firmly—instead of the meek attitude I took when there were no witnesses. I am referring now to the incident of the iceman, shortly after we were married. The man had gotten into an argument with Anita over a late delivery. The food in our ice-chest had spoiled and the tongue-lashing the man received provoked him. He began to shout back at her insolently. I forced myself to step in and ordered the fellow from the house. Curiously enough, he obeyed. As he stood hesitantly in the open door, I shouted: "Get out of here and don't come back!" After he had closed the door, I added ferociously for Anita's benefit: "... or I'll dust off the furniture with you, you worm!"

All the eligible men in Ithaca were enlisting. Even students from up on the hill and married men who were exempt. Although in my heart I knew that I would make a poor soldier—being much more valuable at home, keeping people fit—I was afraid that my reticence would be noticed. I took to

circling an entire block to avoid passing the enlistment office on Seneca Street where a pretty town girl was drumming up recruits. However, it did not matter so much what other people thought of me, as long as Anita did not feel ashamed.

One day when I came home from work I thought I'd test her. I figured that her face would give her away if she really thought me a coward. I mentioned the fact that I contemplated joining up.

She did not throw her arms around my neck and beg me not to go as the wives in plays did (and as I had hoped *she* would do). She merely nodded her approval and said: "Good idea, Peter. Uncle Sam needs everyone. I've been thinking of joining the Red Cross. And don't worry about the store," she went on quickly, "because that lame Murphy boy has just graduated as a pharmacist. He can look after things until you get back. The war can't last much longer now that we're in it."

I saw then that there was no getting out of it. I silently cursed myself for having left myself wide open. "But how do you know that Tom Murphy...?"

"Oh, don't worry, will you? He said he'd be only too glad to...." She stopped in embarrassment. As my eyebrows went up in surprise, she rushed on, "Oh, I knew you'd want to enlist sooner or later. So I thought I'd sound him out before Ray Cavender thought of it."

The following day as I stood in line before the recruiting office she waited to one side. I remember that she was smiling—not broadly, but only with the corners of her mouth—as though something amused her. I think that she might have suspected my meek spirit and half expected that I would make a break and run for it before it was too late! Of course, I did no such thing; although I don't mind admitting that I would have liked to have done so—and probably would have, had I not foreseen the disgrace resulting from such an act.

So I signed the enlistment papers with a great show of unconcern, easily passed the physical examination, and rejoined Anita at the curb. As we walked down Seneca toward North Albany where young Murphy lived, my chest swelled with pride and my knees felt curiously weak.

"Well, Peter," smiled Anita, "you're in the army now."

"Yes," I replied.

A few days later I received orders assigning me to Camp Mills, out on Long Island, for training. I was to leave immediately. At the station many of the men were hoping that their wives would not cry. Something told me that Anita would not; but I was not so sure about myself....

Anyway, late 1917 found me in France, a very bewildered apothecary armed with a rifle in place of the familiar pestle. And a more peculiar soldier never buttoned an ill-fitting uniform blouse over a quaking heart. My quiet garden and the lake now were replaced by a filthy trench, a sea of mud, tangled wire and the grim, ploughed furrows of war.

I will not bore you by going into a long dissertation on the causes, results and horrors of international strife. More capable persons have tried it before me to no avail. To the young, the exempt or the uninitiated, war seems an adventure, a thrilling episode during which one has the rare opportunity of becoming a hero. If that is so, all I can say is that it was a thrill and an adventure I would prefer not having again. And I am certainly not alone in this.

Oh, yes, I can understand the quickening of the pulse whenever a flag goes by and how handsome the boys look in their khaki and steel helmets. But it is easy to feel heroic at home, far from the awful front, surrounded by friends and pretty girls. I think that if recruits were allowed one day of fighting before finally electing to join the army, no country would be able to raise troops.

But this is not a war story; it is a confession, if you wish to call it that, of what led me to commit the crime of which I am supposed to be guilty, and the war plays no part in it with the exception of two incidents. One of them is the shell-shock I suffered; the other I relate here.

In my company were three men to whom I became very much attached. Two of them—Carter and Mullins—were privates like myself. The third was a huge fellow by the name of Wilkinson, my platoon sergeant. War and the ever-present threat of death can forge close friendships, even among people from different walks of life; but, I maintain, pinochle can forge closer ones. We played through more than seven months of front-line fire—

the four of us—and it helped. At first I could not keep my mind on the cards with the low rumble of the big guns and the occasional screams of the German "minnies" in my ears; but when I saw how unperturbed the others seemed, I felt ashamed to flinch and soon I became almost as hardened to sounds as they were.

Strange how four men can get together and become friends with no more in common than a ragged deck of cards! Carter, in peace time, was a shoe salesman; Mullins, a landscape gardener; and Wilkinson, a policeman on the Yonkers force. Only infrequently did they mention their professions. Carter once delivered a long and obscene monologue on the subject of his regulation shoes. "I think they put hobnails on the inside, too!" he grumbled. Mullins once or twice commented briefly on the ravished landscape; and Sergeant Wilkinson, or "Sarge" as we called him, never felt at home with a Springfield. At those times when we had to mount the firing-step, he would pop away with his treasured police revolver. I would stand beside him, firing round after round, hoping that I was not hitting anyone.

For war or no war, the world safe or unsafe for democracy, I could not bring myself to want to kill anybody. Pointing a gun at a person and pressing the trigger was still murder to my way of thinking. The knowledge that I was legally entitled to do it did not seem to make the slightest particle of difference. I did not hate anyone. Why should I kill?

Perhaps this was not a very patriotic attitude to take. Maybe I should have taken a certain pride in killing off my country's enemies. But I couldn't help feeling that the enemy ranks contained many young men like myself into whose unwilling hands guns had been thrust. My own life, up until the war broke out, had been spent in trying to relieve pain, not to inflict it. But when I broached this subject, the Sarge sniffed. "Either you fill their bellies with lead or they fill yours. Take your pick." I solved the problem by keeping carefully out of the line of fire whenever possible and by trying to miss each shot it was my military duty to fire.

One night in October, a second lieutenant came into our dug-out and asked us to volunteer for a wire-cutting detail. "If you don't make too much noise, there shouldn't be any trouble. The Boche are in Exermont, drinking schnapps and eating pigs' knuckles and sauerkraut. I haven't the foggiest

notion why this wire must be cut unless we're going to attack ... but orders are orders."

The Sarge nodded affably and asked, "Is it all right with you guys?"

Carter reached for his shoes without a word. Mullins, in disgust, threw his cards face-up on the table. "You *would* have to come in now and bust up the first decent hand I've had in a month!" he grunted to the lieutenant.

I hesitated a second. Venturing out into noman's-land was something I was not particularly anxious to do. But I felt four sets of eyes turn my way. I tried my best to appear unafraid of the task which, I knew very well, was within my province to refuse. "Oh, hell," I said flippantly but with trembling lips, I'm afraid. "Why not? I could use a breath of air."

A shallow attempt at bravado but no one seemed to notice.

A few minutes later the four of us squirmed over the trench parapet and wiggled toward the wire entanglements. Luckily it was very dark and the enemy opposite us were firing Very lights only once in a great while. Notwithstanding, I was terribly frightened; so much so, that when I caught my wrap-arounds on a strand of wire, I lost my head and yanked them free with a loud ripping noise. Carter, Mullins and the Sarge flung themselves face-downward on the soggy ground and lay still. I quickly followed suit and heard Wilkinson cursing me roundly under his breath. But when nothing happened, we resumed our cautious crawling. My heart was pounding so hard against my chest that I felt certain it could be heard by anyone within a mile of us.

When at length we reached the wire we had been instructed to cut, the four of us went into a whispered conference on our bellies. "You go off to the right, Thatcher," the Sarge muttered between his teeth, "and get into a shell-hole. Keep your eye peeled. For Chris' sake don't go to sleep. The Heinies may have a party out, too. Mullins, you mosey over to that stump on the left. Carter and I will tackle the wire."

I was very glad to crawl into that shell-hole, believe me; and while I didn't like the idea of being separated from the others, I was infinitely grateful that I would be out of danger if shooting began. However, no sooner did I flatten myself at the muddy bottom of the hole when I felt something rub against my knee. Squinting into the inky darkness, I drew my trench-knife,

believing that I might have to kill a rat. At that moment someone decided to fire up a light.

I was lying beside a German private!

He seemed as surprised as I was. We gaped open-mouthed at one another's uniforms. Terror froze the blood in my veins for an instant; then it galvanized me into action. I suddenly became conscious of what I held in my hand and, as he muttered something guttural, I drove the trench-knife deep into his neck.

When you took up this book you expected a confession. Well, now you've got one. That deed, in my own estimation, was a murder. You disagree? It was self-defense? It really wasn't anything of the kind. He had no weapon in his hand; neither did he show any sign that he meant to attack me. But you still think I was right in killing him? I'm sorry, but I don't understand such reasoning. If only someone would explain it to me! Killing Anita who deserved to die—that was a crime? Killing a boy whose only fault was having been born in Germany—that was not?

Twenty years have passed since that awful night and this outrageous misinterpretation of justice still remains to plague my logic. I have asked everyone—priests, convicts, judges, cops—but no one seems to know. Well, never mind.

Ten short minutes seemed an eternity. I lay beside the man I had killed, waiting for some signal from the Sarge. The enemy were firing many more Verys now and that, I suppose, was the reason for the delay. I tried to keep my eyes off the corpse but it was a difficult feat in that small area. In my hand I still clutched the knife and, as light after light went up, I stared horrified at the sticky blood that covered my hand up to the wrist. I tried to wipe it off on my pants.

My three comrades found me that way. The Sarge looked down at the body and then patted me on the shoulder. "Nice work," he said in a whisper. "You got him in the right place, kid. There was a Fritz party out tonight. This guy must've been a look-out. We saw 'em in time. If this baby had opened his yap, we'd all of us be pushin' up the daisies now." Then he callously began to search the dead man's pockets. "Got to look for maps and stuff," he

explained. "Of course, he ain't carryin' any. He's only a buck from the rear rank. But he might have a stogie on him or a pack of butts."

The next morning while I was shaving, I remembered that I had taken a life. I peered at my reflection in the steel mirror, wondering how much the deed had changed me. I knew that I had changed inside ... but outside I looked the same.

On the night of October 4, 1918 we made our bid for Exermont. I should say, *they* made *their* bid; for I deserted.

Deserted in the face of the enemy. Say it. Go ahead, I don't care. I had had enough of the war. But before you condemn me, imagine what might have happened if everybody had followed my example. There would have been no more war. There would have been nothing left to shoot at.

I lagged behind when we reached that ruined cemetery on the outskirts of Exermont village. Machine-gun bullets were kicking up all around us and shells were dropping, cutting off a retreat. I don't know when the notion struck me that we were walking toward sudden and certain death, but I was sure that nothing—not even a blade of grass—could escape that heavy rain of lead. Taking advantage of the fact that it was dark and there was a lot of confusion, I ducked into a convenient shell-hole and allowed what was left of my company to go on without me.

The last thing I can remember before I came to my senses in the little French hospital was the ever-increasing whine of some great shell. A five-point-nine. I could identify it by its sound. As it came down upon me, making my ears vibrate, I tried to press my body into the wet earth. My fingers frantically dug into the ground; my eyes filled with mud; my teeth clenched until they hurt; and my bowels opened....

Every soldier falls in love with his nurse. I, not much of a military man anyway, did not. The war had not caused me to forget Anita and, despite her very infrequent letters, my thoughts were ever full of her. Yet, somehow, the picture was blurred, pleasurably blurred if you wish, the imperfections blotted out. Moments dwelt on in memory, moments very often of the flesh;

memories of moments only to be whispered when we were alone together. Desire is an insidious parasite gnawing at one's body. And so, paradoxically enough, although it was Anita who kept me away from women who could be had for the taking, women like the pockmarked roads of France over which an army marched, it was also Anita who made me glaringly conscious of a need for women. Celibacy is the pathway to depraved thoughts, even as war is the pathway to power of depraved minds. The very fact that Anita wrote so seldom made me want her more. Man usually kills the thing he loves, and cherishes that which ultimately destroys him. In the trenches, with death ever near like a white bird flying, it was not so hard to hold one's emotions in check. So frantically were we endeavoring to cling to life, we wooed and clung to her as though she were our mistress. Then, too, we could always look forward to being relieved, new troops to supplant us in this war that was merely a prelude to all other wars, and then—a few days in Paris. Actually, the fact that few of us ever got to Paris was of little importance. Paris was a symbol. It represented any woman's arms.

Lest you suspect otherwise and visualize my nurse as some homely harridan, I would like to make it clear that Mademoiselle Monet was a very attractive person, one with whom many a man might fall in love. And pray do not think that I was viewing her with the astigmatic eyes of war which distorted everything. My nurse was truly beautiful.

Furthermore, Gilberte Monet was in love with me.

How this happened, I cannot explain. There have been many jokes made about French girls. There is the story that they considered it a patriotic duty to sleep with each and every one of the Allied troops from the brigadier generals right on down the line. Gilberte was not one of those and her love for me in no way hinged upon my uniform. Well, whatever her reason for loving me, I only know that when I eventually became aware that I was in a long, white ward, a friendly-looking dark-eyed girl in nurse's garb was bending over the bed and whispering some strange, incomprehensible syllables which she later told me meant: "So you are awake at last, my darling."

Her voice was gentle, soothing like the voice of a mother speaking softly to her frightened little boy who lay hurt and shivering on his bed, shrinking from imagined horrors. And I was that boy—but the horrors were ghastly

realities. No war has ever been won, not even by the conquerors; and how can one describe that gray, terror-splashed tumult that rages in the frontiers of the mind; that frontier where reason locks with reality? Beyond the trenches lies a region like unto the world in the beginning, without form and void. This I know, for I have been there.

Yes, Gilberte Monet loved me and it was good to be loved; especially good while I lay broken mentally and physically, afraid to die, yet more afraid to live in a world gone mad.

You may laugh if you like. I wouldn't blame you at all. It does seem ludicrous that I, a timid, small-town druggist could so play havoc with a woman's heart. I am certainly no Don Juan.

I was the only American in the hospital and I must have been there quite a long time because none of the other patients were there when I was brought in. The first thing I learned was that the Armistice had been signed and that the war was at an end. You may be sure I rejoiced. But the news that my entire company had been wiped out at Exermont greatly disheartened me.

Although I was out of danger of death, my mind was periodically unsound and my memory as well. Sometimes for hours I would forget who I was, in which ward I belonged and the name of my nurse. During those periods I would suffer indescribable mental anguish until Nurse Monet came to claim me. I would always recognize her and in a minute everything would become clear again. I took to wheeling my chair after her wherever she went. She did not seem to mind.

Many evenings the nurse and I would be in the hospital garden. It was very lovely there with the green lawn and the cultivated flower beds and the stone fountain which played incessantly. She would sit beside my wheelchair and coax me to sing to her. My nasal interpretations of "K-K-K-Katy" and "Over There" sent her into fits of laughter and she never seemed to tire of them. I would laugh with her until my shrapnel wounds began to hurt. To this day, whenever I undress for bed and notice the scars on my left leg and thigh, I think of the evenings in the garden with Gilberte Monet.

One evening in particular would be much better forgotten; and I would not mention it all were it not for my firm resolution to be frank. It happened so naturally and so sweetly that I can scarcely believe it was an adultery. Yet....

It will be hard to describe. I can only tell you what we did—and that may sound very ordinary—but what we did and what that night did to me is the important issue. That half-hour has since served as a standard by which I weigh love to ascertain its value. Gilberte's love was real, not feigned. It could, and did, weather anything—even her realization that I could not reciprocate.

Yes, she gave herself to me. And what is more, no one cared. Who cared what anyone did during those topsy-turvy years—like roulette with the play for human chips? The hospital staff was too preoccupied with a macabre puzzle to be disturbed over absurdities connected with a normal human function. They were attempting to put wrecks of men together again and, far too frequently, important pieces were missing.

And the important missing part in my own case was Anita. Gilberte helped me to fill that gap, for which I shall be eternally grateful. My only regret is the night I am trying to describe. There, and there only, did we overstep the boundaries beyond which we should never have passed. If I had loved Gilberte and not been in love with another woman it would have been quite all right. But I never loved her and, since she loved me, it must have hurt her no end to discover that she was merely receiving the crumbs from Anita's table.

However, it is too late to think about such things now. Even if we had known, I doubt if we could have prevented what happened. Before either of us realized quite what was happening, we found ourselves stretched full-length on a secluded strip of lawn, protected by the enveloping darkness. Gilberte's uniform was unfastened at the breast and my cheek rested on her satiny flesh. I became suffused with a warm glow and the intoxicating belief that nothing mattered but this one very human moment. I kissed her on the mouth—the first time I had ever done so. She responded by tightening her grip and literally melting to me. I removed one arm from under her and in a few seconds nothing—not a shred of clothing—separated us.

"I love you, Gilberte," I moaned again and again.

But, even at that time, while I held a woman in my arms for the first time in almost two years, I knew I was lying. But, somehow, that seemed the only proper thing to say.

The greater portion of the A.E.F. sailed for home on the Leviathan and other ships late in March of 1919; but I was still in no condition to make such a long trip. I'd sit in my wheel-chair, staring off into space, and think about Anita—how she was, what she was doing, and wondering why she didn't answer my letters.

It was my custom to write her each week. Gilberte provided me with paper and pen and ink; and later she would take the letters to post when she went off duty. I remember the first time I handed her a finished letter she glanced curiously at the name and the address.

"Your mothair?" she asked in her broken English.

"No," I replied, not realizing I was being cruel, "my wife." And not satisfied with that, I pulled out the picture of Anita I always carried in my breast pocket. "How do you like her, Gilberte? Isn't she lovely?"

She took the picture from my hand and studied it intently. There was a look in her eyes like some hurt animal and instantly I was ashamed of myself. Knowing how the girl felt about me, I should have known better.

"Vairy nize," she murmured and returned it. I saw a tell-tale sparkle under her lowered lids.

Now please don't think for a minute that I am manufacturing this story out of whole cloth. I can find no explanation for her misguided affections. I certainly did nothing to inspire them. The only observation I might truthfully make is that love is mighty strange and oftentimes somewhat silly. But to prove that Mademoiselle Monet was a real person and not a figment of a distorted imagination, you have only to look up the transcript of my trial in Tompkins County. One of the prosecution's major exhibits was a letter in the French language, addressed to me and signed by her. I never found out what the letter contained until I heard it translated in open court. Yes, it was a love letter. I ought to know, because it helped to convict me.

Gilberte showed her love for me in a way to which I could not possibly object. She did not try to kiss me, caress me or hug me; and pray do not imagine nightly assignations after the other patients in the ward were asleep; she was just over-kind and ever willing to go out of her way to please me. When she spoke of her love at all, it was quietly and in her own language, which I could not understand. Of course, there was no mistaking

the meaning of her words. Behind them whispered something else—an international esperanto which no one could fail to have recognized.

And if, while she administered my sponge-baths, she lingered a little longer than was strictly necessary, what was so wrong in that? She liked to fuss over me like some mother with a child. In the garden on some of the nights when we were alone, she'd lean her head on my shoulder or carry one of my hands to her breast. It was done so sweetly and so lacking in the frenzied sex quality that endowed many of the other women nurses in the hospital, that I was deeply moved. I daresay had I not already lost my heart to Anita ... but that's the way it was.

Have I made myself clear? Except for that night during the early spring, there was nothing between us. And it was not Gilberte's fault that there happened even that. If anyone was the aggressor—it was I. Do not, please, get the impression that she egged me on. Her love was on a higher plane and sex was not paramount. I still have the feeling that I soiled something, strode ruthlessly across a priceless tapestry with muddy shoes.

Now, I often regret that I didn't find out more about Nurse Monet; but at the time, you can understand, my mind was flooded with thoughts of my wife and her picture blotted out everything else or threw them out of perspective. As it was, I merely tolerated Gilberte. She was merely an audience attending a nightly eulogy of Anita. Knowing where I stand now, I am sorry that I paid her so little attention. I must have been exceedingly cruel; especially do I regret taking her. If, by some chance, she ever comes across this book, I hope that she will believe me when I say that I will always hold her memory very dear. I get a little comfort by telling myself that, although she was a few years older than myself, she was still a young woman and I, probably, was merely a fleeting fancy.

But to continue, it was not for several months that I found out Gilberte was not mailing my letters to Anita. This made me very angry because, you remember, my company had been recorded as wiped out and Anita had no way of knowing that I was still alive. I found out one afternoon when Gilberte was shifting her quarters. The other nurses were lending her a hand with the heavier paraphernalia. I would have liked to have helped her myself, because I was very fond of Gilberte, but I was permitted only to sit in my wheel-chair out in the corridor and watch the proceedings.

The lid of her trunk was open as they staggered out into the hall with it. The letters were in the tray—all of them—tied neatly into a packet. At first I only stared at them in astonishment. There could be no mistaking my peculiar style of penmanship. And as the trunk passed my chair, I got a chance to inspect them at closer range. None of them had been opened.

I am thankful that I had both the control and the good taste to wait until the moving was over and the other nurses had gone before confronting Gilberte with my discovery. At first she denied it vigorously; but when I rolled myself into her new room and took the packet from the trunk to wave it in front of her nose, she began to cry.

"Why did you do it?" I demanded furiously. "Answer me, you little sneak!"

I am sure she didn't understand what I was saying and this made me angrier than ever. My temper completely got the better of me and I did something I had never dreamed of doing to a woman before: I struck her across the mouth with the back of my hand.

Poor woman, if only I could erase the mark of that blow! If only there was something, some sort of antidote for the deeds we do in this world without thinking! What she had done she had only done because she loved me. Probably I would have done the same, had I been in her position. But it was several hours before I cooled off and realized this.

That very night I wrote to Anita again. This time I posted the letter myself. The staff raised a frightful rumpus when they discovered I had wheeled myself all the way into the village to the postmaster, and, I must admit, not without just cause. I returned to the hospital totally spent and for the following two weeks I had to be confined to my bed. Throughout this brief relapse, Nurse Monet continued to care for me. I don't think that she bore me any grudge for my having struck her. Nevertheless, I found out later that she had put in an application for a change of ward and been refused.

Before I was finally discharged from the hospital I wrote some ten or twelve letters to Anita and received two in reply. I am still in possession of them. The paper on which they are written is yellowed with the years and the ink has faded until the writing is almost illegible. Intrinsically they are worth nothing; however, I think that if I copy them here, they might explain themselves and also how I felt when I first read them. In this way I might

possibly be able to transfer to you the intangible mental unrest I suffered because of them.

The first was a short note, written in a great hurry on a piece of Ithaca Hotel stationery. It ran:

June 3, 1919

Dear Peter,

I am so glad to hear that you are alive and getting along nicely. Of course, I am sorry to hear that you've been wounded but I think you are very lucky to have gotten away so easily, don't you? You know that the newspapers listed you in the casualties and getting a word from you was like receiving a communication from a ghost. As a matter of fact, I have been wearing mourning clothes for over two months. And oh, Peter, I've been so dreadfully lonesome here in Ithaca since the Armistice. I haven't been outside this house in almost three weeks ... except to do my shopping. Please write to me and let me know your plans. By all means do not leave the hospital until you have been pronounced completely well. If it is advisable that you remain another month or two, don't disregard the doctors. I can wait. And don't, for heaven's sake, try anything juvenile like surprising me.

Your wife,
Anita.

There were two things that immediately struck me as being strange about the letter. The first was the curious absence of the word "love." She had not even said, "Your *loving* wife." The second was that while the stationery bore the insignia of the familiar Ithaca Hotel, the envelope was stamped with the incongruous postmark of New York City. If she had not been out of the house, how then could this letter have been mailed more than two hundred and fifty miles away? This worried me considerably.

Her next and last letter I received just as I was preparing to leave the hospital, bound for Paris. I thrust it into my pocket unopened, deciding to

read it after I had said my goodbyes. I had made arrangements with the driver of a produce lorry to take me in with him on one of his semi-weekly trips to the capital and he was parked before the main gate, impatiently punching the rubber bulb of his horn.

Hurriedly, I bade farewell to everyone—doctors, nurses, orderlies—but Gilberte I could not find. At the risk of having the lorry proceed without me, I raced through the entire hospital, thrusting my neck into every room much to the annoyance of staff and patients. Just as I was about to give up hope, I spotted her sitting alone at the far end of the garden. I could see by her posture that there was something wrong. Her shoulders sagged disconsolately.

"Gilberte!" I called as I hurried over to her. "I'm leaving now. Didn't you know? I've been searching all over for you. I couldn't bear the thought of leaving without saying goodbye."

"Goodbye," she said apathetically.

I looked at her in astonishment. We had long since made up after our quarrel about the letters and this passive attitude on her part puzzled me. I raised her chin with one finger but she steadfastly refused to meet my eyes.

"What's wrong, Gilberte?" I asked. "Aren't you sorry to see me go? We've been such good friends and all that. I'm going to miss you, you know."

"That is nize," she replied dully.

It was then that I noticed her hands. They were clenched tightly in her lap. The knuckles were white and the skin covering them was stretched taut, almost to the point of being transparent. Her eyes she kept fixed on the ground. Though her cheeks were pale and her lips quivered at the corners, I knew that she had not been crying. I was glad of that, at least.

I moved to take her in my arms but she turned her head away. "Please," she whispered, "don't kiss me." There was a harsh, but barely audible, agony in her voice which brought a lump into my throat. At that moment I knew the full tragedy of war. War injects the virus of sadness into the veins of all and the innocent suffer along with the guilty. Sometimes I feel that the dead are the fortunate for they, at least, no longer have to look upon the wreckage.

The lorry driver began to honk away with renewed vigor. I knew that if I kept him any longer he was sure to drive off without me. Under my breath I cursed the restless fellow and, stooping quickly, I kissed Gilberte's forehead and ran to the road without a backward glance.

Needless to say, I felt very sad. Instinctively, I was aware that I would never see Nurse Monet again. My heart was cold with misgivings, as though some strange, dark traveller had passed close by and I had felt the swish of his cloak. Once beside my heavily-moustached companion, I turned for a last glimpse of her but the thick foliage above the low garden wall cut off the view.

As the lorry rattled and banged along the rural roads, quaking in every inch of its ancient frame, I tore open Anita's letter. This, too, was short. The handwriting was a scrawl, almost childish in its carelessness.

July 22, 1919

Dear Peter,

Received your letters and am happy to note that you have recovered from your illness. I have some great news for you which ought to cheer you up. The Great Eastern Drug Company is interested in buying the store! They are offering an incredible sum. You know that that is the chain with drugstores in almost every city and town east of the Mississippi. We can consider ourselves fortunate that they are interested in our place rather than Cavender's. Probably, after they take over, they'll force him out of business. Peter, maybe if we sell the store we can live in New York. What do you think of that? You can open a place there, you know. We can talk about it some more when I see you. Cable me what boat you'll be on and I'll meet you at the dock.

Anita.

That's all there was. I turned the letter over and over in my hands, searching for something that was not there....

Again no word of love.

PART TWO

THE GROWTH

I believe that I have succeeded in giving you a rough résumé of the events which preceded my homecoming from France. I have not gone into any great detail; firstly, because it might in some way confuse the main issue; and secondly, because many of the less important incidents have blurred in my mind with the passing of the years.

I have neither invented anything nor colored the events to favor myself. I have not tried to find any excuse for the things I did or the emotions I experienced. You will admit that the portrait I have painted of myself in no way depicts a hero or a martyr. But I do pray that you will credit my outspoken truthfulness—which I am essaying at any cost—by learning the whole story before you turn thumbs down.

I must confess that there was no malicious plot brewed to ruin me and mark me a murderer; and I do not consider myself a victim of circumstance. My trial on an indictment of First Degree Murder was the essence of fair play; the jury that convicted me was composed of very honest, unprejudiced citizens who, after hearing the preponderance of unfavorable testimony in the case, voted the only plausible verdict. I daresay had I myself been a member of that jury and somebody else been on trial, I would have been quite in accord with that decision.

Really, there is only one person to be blamed: myself. Of course when you have learned of Anita's actions, you may form the opinion that she did a frightful thing—and you will be quite right. However, if I had not been such a blind idiot, the whole thing might never have happened. And although I blame her for permitting me to marry her, I blame myself more. Certainly, any half-witted child could have detected something mighty peculiar about my marriage from the very first; and there is nothing quite as inexcusable as utter stupidity.

The entire voyage—from the time the ship left Havre until we sighted the Statue of Liberty—I spent in trying to disperse the growing doubts and fears which assailed me. If the war had done much to injure me—and it undoubtedly had—it also did something to help. By virtue of my long absence from her side, I was able to view Anita more objectively. I was able to pick out motives for this and that which I had never noticed before. The clearer insight, unfortunately, was not very pleasant because not only could I see Anita less obscurely, I also took frank stock of myself. What could she possibly have seen in me?

It may be that I have an inferiority complex; a neurologist who visited the prison during my term told me that I have. The fact that I always have felt self-conscious in a new hat or overcoat seems to bear him out in this contention. But whether it is true or not, when I married Anita the successful outcome of my suit at once inflated my ego and I began to feel that I was *somebody*. How could I have felt subservient to anyone when I had the most sought-after woman in town as my wife? It was not until the war took some of the wind out of my sails and I had read and re-read several of her *friendly* letters that I began to seriously wonder if she really did love me. If she did, I reasoned, it was a very cool sort of love and not at all like the fierce passions of the French.

Much to my dismay, she substantiated this dark thought of mine by the way she greeted me at the dock. Surrounding us on all sides were lovers, families and close friends being reunited, openly kissing and embracing one another. But when I spotted Anita—looking perfectly beautiful—and hugged and kissed her, she turned her face away to preclude the possibility of any repetition. Not only that, she murmured in a slightly irritated tone of voice: "Oh, please. Must you do that here?"

I laughed, though not very convincingly. "Darling, I don't care if the whole world knows I love you! I want them to know!"

I kissed her again, over and above her protests and she said, "Well, that's very sweet of you and all that, Peter. But must you...?"

At that moment a Customs officer interrupted the scene and I was grateful. Her marked indifference to my happiness at seeing her hurt me no end and, had we been alone, I think a scrap would have started. As it was, an hour later in a taxicab my repressed anger cooled and I slid an arm about her

shoulders. She was far too exquisite to fight with and since she did not draw away from me or try to remove my arm, any suspicions I might have had—that she no longer cared for me—fled.

We checked in at the Martinique Hotel, having decided to stay in the city overnight before taking the train for Ithaca. The desk clerk, a war veteran himself, kept me in conversation—much to Anita's disgust—while I registered. Although I was very tired from the ordeal of the dock formalities, she insisted that I immediately go out and purchase some civilian clothes.

"That uniform will be the death of me," she complained. "While you've got it on, anyone, even a street-cleaner, feels he's your equal. Besides, you're not an officer."

At this, I demurred. "I want to bathe and take a nap for a few hours first, darling. It's much too hot to shop in this sun. The stores stay open until seven and I can buy them then. Right after I've put on the new duds, we can eat dinner."

Anita sighed wearily, as though I was some idiot whom she was eternally fated to humor. "You're hopeless but I suppose there is nothing that can be done about it. All right. Have your nap. But be sure you wake up and get your shopping done in time for an early dinner. I want to go to the theatre tonight."

I stared at her stupidly.

After having been separated from her husband for almost two years, she wanted to spend the first night of the reunion in a theatre!

Because I was unable to finish my medical course due to the sudden death of my mother, I am not a doctor; neither am I a psychoanalyst or a physiologist; but I am of the opinion that the sexual appetite of a person is the thermometer by which the degree of his or her love can be measured. By this I do not mean to infer that love is mere animal lust; certainly not. I do believe, though, that if a person is in love, sex follows naturally and continues to fire both parties only just so long as mutual adoration remains.

All this, of course, is but a prelude to my telling you that Anita had to be coaxed.

I write of this in embarrassment for I cannot conquer the feeling that I am revealing secrets rightfully belonging not to me alone, but to a sacred partnership. As a matter of fact, this entire tale is difficult to tell since the greater part of it concerns a woman now dead and unable to admit or deny its implications.

This self-consciousness comes not from reviewing events which cannot be confirmed by concrete evidence, but because I realize that I am, in part, admitting the charges against me as set forth in the indictment. My attorney has pleaded with me to discontinue the writing of this manuscript, warning me that should it find its way into unfriendly hands it might be used against me. Despite everything he says, I have decided to ignore this potential danger. It is far more important to me that I be understood. Blame this on the newspapers which labelled me an insane killer and deliberately misquoted and misconstrued everything I said to reporters.

Perhaps my digressions confuse; if they do it is unintentional. Remember that I am only a druggist, temporarily borrowing the pen. If this work is ever completed, I am sure that the desire to write anything else will never infect me. As it is, I don't feel at all at home writing and, were it not for the fact that I wish to offer my side of the story, I would remain silent.

I have said that Anita had to be coaxed; and while some of you will disdainfully make the observation that I am hardly a person to arouse in any woman the warm efflux of genuine passion, at least I can lay claim that if this is so, I have always been the same. If Anita had been in love with me once—and she must have been to have married me—there was no plausible reason why she should suddenly change.

Be this as it may, when we returned to the hotel from the theatre that night, she manifested an obvious disinclination to retire to our room. She hung back in the lobby.

"Let's not go up yet," she begged. "I don't want to go to bed. We're in New York so seldom, you know."

"But we have a very long train ride tomorrow, Anita. We'll be all worn out...."

"Let's not, Peter. We can doze on the train."

I looked at my watch. "But Anita darling! Don't you realize it's almost one o'clock! Where would you want to go at this hour of the morning?"

She hesitated and bit her lower lip. "You had a nap this afternoon so you shouldn't be tired. We might," she suggested after a brief moment of thought, "try one of those funny little cabarets below Fourteenth."

Even with the nap I was feeling rather spent and I firmly objected to this whim, trying to laugh her out of the notion. Moreover, having been deprived of my wife for so long a time, I had eagerly anticipated the moment when I might once more have her to myself. I do not think that it was unreasonable of me to suppose that she shared this feeling. If she loved me, as I was sure she did, she, too was thirsting for me.

"But I *do* want to see the Village, Peter!"

"You will," I promised. "We'll come down here soon again, you and I. And when we do," I added with forced gaiety, "we'll do New York up brown." I took her elbow and gently urged her away from the revolving door. "But not tonight, dear."

"Is that a promise?" she asked skeptically.

"Cross my heart!"

Anita seemed to come along reluctantly and she was pouting as we entered the elevator and shot up to our floor. I put the key into the lock and kicked the door open with a bang. Happy that we were at last by ourselves for the remainder of the night, I became jubilant as a schoolboy. I lifted her slim body, kicking, in my arms and staggered with her over the threshold. Still weak from my long convalescence in France, I am afraid that I was breathing heavily as I deposited her on the double bed. She sprang to her feet as though rebounding from the bed-springs.

"Peter!" she protested testily. "What under the sun has gotten into you? You know better than to try that! You're certainly in no condition to...."

But I stopped the rapid flow of her words by covering her mouth with kisses. With my mouth pressed hard against hers, I forced her back onto the bed. Our feet in dusty shoes soiled the pillows. So tightly were we together that I could feel her pelvis bones against me and her teeth behind her closed

mouth and her full, hard breasts.... With one hand I felt for the snaps at the side of her dress.

"I love you, Anita," I groaned.

"You're hurting me," she answered.

Some time later, as we lay on our backs and stared up at the dim expanse of the ceiling, Anita touched my arm. "Peter dear," she whispered softly.

I thrilled at the affection in her tone. It at once brought to me a sense of contentment which complemented the delightful tranquil state that was now my body's. "Yes, sweetheart? What is it? Can I get you anything?"

Her voice came back to me, wistfully out of the shadows. "Can we live in New York after the store is sold? You know how much I love it here and ... well, Ithaca has never seemed like home to me."

I sat up in bed with a start. Anita was taking it for granted that I intended to sell out! Such, you may be sure, was not my plan. The thought of disposing of the thing I had dreamed about and worked for since its humble beginning four years before had not once merited my consideration. My store was now the largest of its kind in Ithaca and, since receiving Anita's letter informing me of Great Eastern's offer, I had been playing with the idea of opening a branch. Maybe I, too, would someday operate a chain of drugstores!

Something cautioned me, however, and I held my tongue. Everything was peaceful now; why spoil it? "We'll talk about it tomorrow," I said and pounding my pillow with a fist, I dropped back and closed my eyes.

"You're a darling, Peter," Anita went on and I felt cool fingers pass over my face in a soothing caress. "I just know you will. We can have a much better time here. Did you know that most of your friends have moved away since you left? Mrs. Burtleson and the Crespis and Walt Mandeville have all gone. Joe Crespi has a job selling Packards down here. Doing very well, too, I understand. And Myra Parsons got married to a Brooklyn man. He manages a factory or something. And she has a baby almost a year old, too. What do you think of that! Somehow I never thought of *her* becoming a mother! Always liked to gad about when I knew her. And oh, yes. Harvey Bond—you remember him, don't you? Tall, funny-looking fellow with glasses and red hair? Sure you do. He used to live right next door to the Carpenter place on the Heights...."

She stopped short. I could almost hear her teeth snap shut. I am positive that she had not meant to mention that name. But though I opened my eyes in the darkness, I made sure not to move a muscle. I was certain that if I showed any sign that I had noticed the slip, she would be embarrassed or uncomfortable.

In a second, to cover up, she went on with a show of defiance. "Yes, and by the way, I hear that Leo Carpenter is down here somewhere. Somebody—I think it was Tom Murphy—said that he plans to go to Vienna soon to study. Lucky dog! His father left him a mint of money. He's about the only thing I've got against New York and he won't be here long, thank God." She paused for a few minutes until I thought that she had gone to sleep. Just as I was congratulating myself that such was the case, she recommenced the one-sided debate. "So you see. Peter, about the only people left in Ithaca whom we know at all well are Mrs. Michaelson and that awful Turnbull person. And you couldn't call them friends very well, now could you?"

I did not answer her. I pretended that I had fallen asleep.

The next morning, much to Anita's disappointment, we boarded a train for Ithaca. I was in a state of high spirits; for returning to the town of my birth—which many times during the war I had never expected to see again—was a prospect both pleasant and exciting. I am one of those, I guess, whom the Cornell students slurringly refer to as "native sons." I have rarely had the desire to go to the big city with its stale smells, its filthy streets and its unbearable noises; preferring to remain peaceful and perhaps slightly bored in the country areas. Anita, on the other hand, was moulded from different clay. But she didn't reveal her restless spirit until after we had been married.

To this very day, I don't know whether it was Ithaca or my own poor company that fired her with the wish to live in New York ... or whether it was the desire to be near Leo Carpenter. The whole thing is as vague now as it was then. At times I am sure that her mind never toyed with thoughts of infidelity; and, whatever the world may think, I still accept Anita's statement that she was never untrue to me while I was away at war at its face value.

But I am forgetting myself and speaking of her as though she were still alive and not lying so stiff in her coffin.

The train had scarcely pulled out of the station when Anita introduced the subject I had this far managed to evade. I tried my utmost to be indefinite, reminding her that I had not as yet interviewed the agent for The Great Eastern and that I could not possibly decide one way or the other until a thorough examination of the terms they offered was made.

"Unless it is something extraordinary," I said, "I think it might be wise to hold on to the place. The store has been newly equipped, you know. Besides, the lease I hold is very favorable and still has quite a long time to run. We don't need money badly enough to throw away a good thing, do we? The Great Eastern wouldn't be interested in the place if they didn't know it was a live investment."

"Oh, you'll like the offer they're making, all right," predicted Anita confidently. "Young Murphy couldn't believe his ears when the man approached him and named a tentative sum. How long do you think it will take before we can move, Peter? I've already spoken to the Carpenter Realty Company about putting the house on the market. They don't believe we'll have much trouble getting rid of it."

I winced but said nothing. Fearful lest my face reveal disapproval of these high-handed measures, I turned and looked out of the window at the racing scenery. We were somewhere in Pennsylvania. The train was whipping around sharp bends and the low mountains on either side of us were studies in contrasting shades of green. Now and then we would plunge into short tunnels and when we would emerge, the sunlight was blinding. I had a headache.

"Well?" persisted Anita.

"Well what?" I asked without taking my eyes from the window. I have never been much of an actor—my eyes give me away—and pretending not to be aware of the subject being discussed would never get by if I faced her.

"Are we going to live in New York or not? Really, Peter, you're not paying much attention. Have I been talking to myself this last half hour?"

"Eh? ... er, no, of course not, dear. Live in New York? Well ... if we sell out, we'll talk about it. There's no great hurry, is there? After all, I'm not even

home yet!"

She said no more about it after that. A colored nurse came to occupy the seat opposite us leading one little girl of about five or six and carrying a baby in her arms. Both Anita and myself amused ourselves by playing with the tot until I whispered to Anita: "She's so cute! I wouldn't mind having one like her myself."

Anita dropped the little girl's hand as though it was red-hot and with a wave sent her back to her nurse-girl.

"Wouldn't you?" I stammered.

She looked at me for a moment before replying. There was something cold and piercing in her stare that I didn't like. I couldn't imagine what I had said so wrong.

"No," she said flatly, "I wouldn't."

We had no sooner reached the front gate of our house when I stopped in astonishment. The way the little place looked—run down, the garden choked with weeds, the lawn grown up—was enough to bring tears of disappointment to my eyes. The gate, usually so trim and bright, was covered with rust and hanging crazily on a single broken hinge. I looked toward Anita speechlessly.

"Oh, I know things look pretty bad," she admitted with a shrug in answer to my wordless question. "But you must remember that I was all alone here. And don't forget that you haven't been here in two years. Things change."

"They certainly do," I remarked with ill-disguised meaning and she flashed me a sharp look as we picked our way through the shabby yard to the front door. Here, too, I found evidence that struck me as strange. Before the door, rolled up but with the dates visible, were four copies of *The Journal-News*. None of them had been opened.

Before I could comment upon them, Anita sighed, "Oh, dear. I've been so busy these last few days that I haven't even had time to read the paper! And you, complaining about the grounds!"

I let this pass and did not question her further although I was totally innocent of what it was that occupied all of her time. Before the war she

had always been faced with the problem of how to while away her leisure hours.

A few days spent in examining the books of my store and conferring with the man from The Great Eastern definitely decided me that I would be unwise to sell. Business was booming with prices right. The Ithaca Drug Company was doing so well that I offered Tom Murphy the permanent job of my assistant which he joyfully accepted. The store swarmed with customers from the time we opened each morning until we reluctantly closed the doors. I began to deliberate seriously the advisability of inaugurating an all-night policy.

As yet I had not informed Anita of my decision to refuse Great Eastern's offer. I knew that she would be very disappointed and I wished to delay as long as possible the verdict which she would undoubtedly consider foolish and quite inconsiderate of her feelings in the matter.

After the passage of a week, however, I felt that I could not decently withhold the news longer. I was not afraid of Anita in any sense of the word, mind you, but I dreaded to see her unhappy. If only I had suspected that the store was the match which would eventually cause the terrible conflagration of our marriage, you may be sure that I would have disposed of it at any cost! You see, before I married, my life belonged exclusively to that store; afterwards it became entirely Anita's.

Just as I was about to put on my hat and go home to tell her, Doc Turnbull entered the place and we got to talking.

"You're doing a wise thing, boy. Those city fellers are a shrewd bunch and no mistake. They'd skin the eye-teeth out of their own grandmothers. Hold on to this joint if it's the last thing you do. At the rate you're going now, Ray Cavender can't last much longer across the street and this section will all be yours."

"Yes," I said, "but Doc, suppose they buy out Cavender and try to break me by under-selling? You know I can't buck a rich company like that."

Doc spit. "It would take a hell of a lot of under-selling to make the townspeople desert you in favor of them, son. The Great Eastern knows that. If they can't work out a fair deal, they won't try to push their way in. Don't worry."

We chatted a while longer until I happened to notice the clock above the soda fountain. "Good heavens! I've got to run now, Doc. Say, why don't you drop around to the house tonight? Weather looks nice and clear so there won't be many mosquitoes. We'll sit down by the lake and chew the fat."

Doc sighed profoundly. "You know, I miss that garden of yours, son. Haven't set foot in it for over two years, would you believe it? But I won't be able to make it tonight, I reckon. Too many patients are yelling for pills."

I laughed. "Now don't try to tell me that you deserted your favorite spot just because I was away! Didn't you drop in on Anita?"

Turnbull picked up his instrument case. "When? You know the only time I can get around to paying social calls is on Friday or Saturday. Hell. And you know your missus ain't shown hide nor hair around town during weekends since you left for the other side." He grunted and mopped his damp face with a pocket handkerchief. "I suppose because she bought one of them week-end special commutation tickets on the railroad she just felt she *had* to use it up. Every Friday afternoon, regular as the clock, she'd be on the train."

Together we left the store. I think the old man must have seen something in my face because, as we separated, he asked: "What's eating you, son? Anything the matter? You're not looking so chipper tonight."

"Oh, nothing, Doc, I guess," I hurriedly reassured him. "I suppose this business about the store has got me going. Anita wants me to sell out."

Doc shook his head. "Now don't you listen to her, Pete. Mind what I say. You've got a nice living here. Lots of fellers would like to be in your shoes. Me, for one."

"Night, Doc."

"Night, Pete."

The information that Anita had spent every week-end away from home during my absence, occupied my mind as I walked home that evening,

completely driving the business of the store from my thoughts. It was not until I was seated at the dinner table that I remembered what I would be forced to tell her. I was pondering the problem or what was the easiest way to break the news when—as on previous nights—Anita herself brought up the subject of the proposed transaction.

"Well, Peter? Did you get the papers?"

To forestall her, I had invented the story that they were drawing up contracts for my approval or rejection. In the meantime, I was supposed to be making a thorough investigation of the store's books, the value of the stock on hand, and of business conditions in general.

I forced myself to be direct. "Anita," I said, looking her squarely in the eyes, "I'm not going to sell out."

As I said this, she was pouring the iced tea. Pitcher in hand, she leaned forward with a frown darkening her face. "You're what! You're not going to sell?"

"No. I think I'll hold on to the place."

Her breast heaved as though she had suddenly become short of breath and her lips tightened into that thin, white line I had come to dread. "But I want you to sell," she said evenly. I could feel the wealth of fury repressed in those six simple words.

"I'm sorry, Anita," I replied quietly, trying not to look ashamed of myself. "I've already turned the offer down." Then her eyes began to blaze and I half-rose from the table. "Now look here. There's no call for you to take on. That store is all we've got and the best thing we can do is to keep it."

I will never forget her lip curling into a sneer as she brought the tea pitcher down onto the table with such force that a great crack appeared in its heavy pottery from base to spout. "So that's how much you love me, is it?" she cried. "You know I hate it here! Do you expect me to slave for you in this dirty little hovel all my life? Well, I won't! I won't, I tell you!"

I can't remember my exact words but I made the rather caustic remark that the house had always been presentable until she commenced taking weekly trips to New York in my absence. As soon as I uttered this, I was sorry for

it. The sneer faded from her lips, leaving her quite pale and defeated looking. Both of us remained silent for what seemed to be a long time.

At length, seeing that she made no retort in defense of herself, I reseated myself and poured out the tea. Although I did not look up at her, I could feel her heavy breath on my forehead. "I'm keeping the store, Anita," I reiterated as though to put an end to the whole dispute.

Anita silently left the room and I had to finish my dinner alone.

I imagine a good many husbands would have insisted on knowing more about the regular (or irregular?) week-end excursions of their wives; and perhaps if I had done so I would not have had to spend so many years in prison; but I was so confident that the trips were merely in the category of mischievous outings, spent mainly in theatres that I did not press the subject. Anyway, I did not want to further irritate Anita. The turning down of the offer had done quite enough harm.

For three days following the scene described, she would not speak to me. The house became as gloomy and silent as a tomb. On the fourth day she contracted a severe toothache. Her jaw was actually swollen and it looked as if it might be terribly painful. Anita swathed her face in napkins and at frequent intervals grudgingly employed the preparation (chloroform, oil of cloves and creosote in equal parts) I had brought her from the store. Although it was impossible for her to eat anything, she flatly refused either to visit the dentist or to allow me to summon one.

"You never asked me why I went to New York almost every week-end," she announced acidly out of the good side of her mouth, "so I never mentioned my teeth. They've been giving me trouble for some time. But of course you wouldn't be interested in that!"

Her bitter sarcasm made me feel guilty and in the wrong. I made haste to assure her that such was not the case and that indeed I was interested in her health. My obviously earnest sympathy seemed to placate her somewhat.

"I've been going down there to visit a dentist," she went on, after a sullen moment of silence. "The old fool we have in town here doesn't know a

tooth from a toe! If I'd let him, he'd yank them all! But this man in the city is simply wonderful. I can't recall who it was that recommended him to me, but he never hurts me with the drill."

This voluntary explanation of her trips tore the veil of mystery which had surrounded them and made me feel a suspicious idiot. I must confess that for a time I had been harboring frightful thoughts: dreams of Anita in alien arms. Now, with her story convincingly illustrated by a badly swollen jaw, I could only curse myself inwardly for having so filthy a mind. I was totally unworthy, I silently told myself, to be the recipient of such a fine woman's love.

All that night she tossed and turned in agony. Several times I was at the point of dressing and going down to the store for a powder which might induce her to sleep; but by the time I had made up my mind to do this, she would fall into a light doze and I was afraid to awaken her.

In the morning, at her suggestion, I put her aboard the eastbound train for New York. She promised that she would return the same evening in time to get me some dinner. I knew that that would not leave her much time in the city but I didn't like the idea of her travelling at night or, worse yet, spending the night in some city hotel.

My day at the store was singularly eventful. Usually the hours would pass filling prescriptions, interviewing pharmaceutical salesmen, or chatting with the steady customers. But on that day the agent for The Great Eastern reappeared upon the scene, hot and irritable and offering fully a thousand dollars more than he had previously been authorized to give. I took luncheon with him at the Ithaca Hotel and informed him that I would consider his offer only upon the express agreement that I would be given the management of the store. This, he assured me in no uncertain terms, was a ridiculous demand. We parted, both of us decidedly in bad temper. In my ears rang his farewell words: "Thatcher, you are *the* most pig-headed son of a bitch I've ever met!"

This anger of mine was very unfortunate as I later found out. It made me three enemies: Mrs. Wainscott and the parents of that incorrigible little brat, Jackie Mackintosh. The former, when she sidled nervously up to the counter and whispered a confidential something in my ear, I brusquely answered: "What? For heaven's sake, madam! Can't you ask for anything in a normal

tone of voice? What are you afraid of? If you want a box of suppositories, ask for a box of suppositories!" Of course Mrs. Wainscott grew red in the face and abruptly left the store with the muffled guffaws of the loungers at the soda fountain burning in her ears. I did not see her again until she testified against me at the trial.

Not five minutes later, I administered a hearty spanking to Jackie, whom I caught red-handed with both his pockets filled with chocolate-covered cherries. He must have run home immediately to his mother and complained of this treatment for later in the afternoon she called upon me at the store, accompanied by her equally irate husband. All of my patient explanations that Jackie's behaviour was not without precedent made no impression and, at last, I flew into a rage and ordered the trio from the store. As they departed, Mr. Mackintosh flung back over his shoulder, "You'll pay for this, Thatcher. Mark my words!"

But, angry as I was, I was more incensed at my own bad conduct. Never before had I insulted customers with such abandon. I had always been careful, despite any emotional upheavals among my clientele, to maintain an imperturbed exterior. Sadly, on the day in question, I bridged this self-imposed gap with a vehemence born of my knowledge that neither Mrs. Wainscott nor the Mackintosh clan were valued patrons. Little did I suspect at the time that those petty squabbles would help to dig the grave I was soon to inhabit for many, many years.

As a precaution, just before I started for home on that never-to-be-forgotten night of August 20, 1919, I asked Tom Murphy to make up an effective sleeping draught and bring it around to my house on his way home. I realized that Anita might suffer further pain in spite of, and with all due respect to, her city dentist. In any event, I reasoned, it would do no harm to have something of the kind in the house. Murphy agreed to deliver the stuff not later than nine o'clock.

When I sat down at the dinner table that night, Anita impatiently waved aside my solicitous inquiries regarding her teeth and thrust a letter into my hands:

"This came for you today. I can see it's from some woman. You'd better read it."

From her tone of voice and the look in her eye, I gathered that Anita was deriving some huge satisfaction from the letter. She was gloating and nowhere, strangely, was I able to detect a sign of jealousy. Ordinarily, I would say that these signs were the usual masochistic antics of the wife who has caught her husband in some nefarious practice; but in Anita I determined a note of triumph—like the exclamation of a soldier who has just impaled the enemy on his bayonet.

I realized immediately from the handwriting and the postmark that the letter was from Gilberte. I ripped open the envelope with a show of innocence. It wasn't a very long letter but I could not have read it then or at any other time. It was in French.

I will not ask you to believe me in this; the jury didn't. After nearly two years in France, sojourning for the most part with people who spoke no English, it doesn't sound plausible that I had not picked up enough French to decipher Gilberte's simple message. Nevertheless, it is so. I have never been good at learning languages and, except for a few choice idioms of profanity garnered at the front, I am hopelessly incapable of translating anything more than drugstore Latin.

After a glance at it, I passed the letter across the table for Anita's inspection. "What does it say?" she asked coldly. "Or is it too personal for your wife to know?"

"I don't know myself," I replied with a shrug.

"Really!"

"You can see for yourself. It's in French."

She sniffed. "And you can't read it, eh?"

"No."

Anita turned the letter over and read the signature. "Gilberte. Who's she?"

"She was one of the nurses in the hospital. A nice old lady who was kind to me," I lied for no other earthly reason than perhaps to divert her attention from the letter. "I'll get someone to translate it for me tomorrow. I think Mr.

Ottavio, the Italian shoemaker, speaks a little French. Or maybe one of the professors from up on the hill might come into the store."

And with that, I stuffed the letter into my pocket and promptly forgot about it. There was nothing farther from my mind at that time than Gilberte; and while I had come to miss her, other and more important things kept cropping up before I had time to evoke any more than a few pleasant memories. Like Doctor Carpenter, Nurse Monet was only a shadow of the past, occasionally looming up to loiter near the more remote fringe of the present.

We continued to eat the meal in silence, Anita chewing cautiously in one side of her mouth. As she brought in the dessert—a gelatin pudding topped with whipped cream—I asked her what the dentist had accomplished. As an answer, she reached into her apron pocket and rolled two very large molars onto the table. The roots of the teeth were still dark with traces of dried blood and the sight of them at the dinner table was almost enough to make me ill. With difficulty, I mastered my nausea and turned what I hoped were sympathetic eyes in her direction.

"Poor kid," I murmured and going over to her I took her in my arms. She turned her back to me so that it was impossible to see her face, but the gelatin in the dish she was holding trembled and almost bounced to the floor. "Darling, I didn't know. It must've been awful."

"Much you care!" she said, bursting into tears. I held her as close as I could and straining myself, I managed to kiss the side of her mouth.

"Now, now. You know I care!"

"I ... I thought you ... loved me!" she whimpered.

"But what an idea! Of course I love you! Have I ever said that I didn't? Come now, Anita. What is it? Have I been nasty to you?"

"You ... you don't care how I feel! You won't do the one thing in the world I want you to do! You know I'm rotting here! You know everyone in town hates me!"

I tried to laugh her out of the idea although I suddenly realized how few friends Anita really had. None of the other young married women ever came to call on her. I had taken note of this once before and, after much

thought, had put it down as rank jealousy. Anita was far too beautiful. But it was unnatural that she should not have at least one friend among her own sex.

"And I hate them, too!" she continued in that little, choking voice. She had moved over to the table and, disregarding the dishes, some of which were dangerously close to the edge, buried her face in her arms. Her position reminded me of that night—July 2, 1917—when she had shed alcoholic tears in almost the same spot.

How long she continued to sob there and how long I stared blankly at her quivering breasts and at the delicate tendrils of blonde hair that curled at the nape of her neck, I do not know. For it was then that I began to weaken a little in my resolution. As this was happening to me, I became conscious of the fact that I was speaking, backing up my gradually dying decision not to sell with forceful words of refusal. Just exactly what I said and precisely what she replied to me, I am unable to remember. It may be that a touch of my old shell-shock malady came back and seized my memory for a little, twisting it out of focus.

Because the next thing I can vividly recollect is Anita standing on her two feet, pale and furious, with mother's discolored steel carving-knife in her hand. On the floor around the legs of the table were several chipped and broken dishes which her sudden leap must have knocked down.

"You're killing me!" she screamed at the top of her lungs. The shrill quality of her voice sent a shuddering response through me. My heart constricted, leaving me as cold as ice and dead certain that something awful was about to happen. I could feel the hairs rise on me. "Don't you know that you're killing me, you fool? Every day, every minute I have to stay here! ... Oh, I can't stand it any longer!"

Risking a nasty cut, I went toward her, hoping to get the knife away from her; but she moved off a few paces as I approached. "Don't be childish, Anita," I pleaded. "And stop that screaming. Do you want the neighbors to hear?"

It may seem silly that at a trying moment like that I should be concerned about anyone other than the two of us; nevertheless, such was the case. I have always secretly dreaded that my personal affairs someday might be

aired in public. This fear was born of a life spent in a small town. I have seen too many people broken and unable to hold their heads up after the malicious work of gossipers and scandal-mongers.

I continued to try to quiet her but she would not be hushed. "Why are you doing this to me? You hate me, don't you? Oh, don't deny it! I know you hate me! Well ... I hate you, too!"

"Anita!" I gasped.

"Yes, I do! I hate you! I can't stand the sight of you! You bore me, see? You didn't know that, did you? Well, now you do!"

The tears were drying on her face and in her eyes, leaving them rimmed and reddened. The rouge on her cheeks stood out against her dead white skin in round, uneven splotches. With her hair in disarray, she looked almost mad and, I must confess, horribly ugly. Seeing her this way after once having witnessed her beautiful, frightened me. It also hastened me in my decision to do what she wished.

I managed to get my hand on the hilt of the knife and I began to twist it from her grasp. Struggling to retain it, Anita commenced to shout again with still more rage. "Let me alone! Let me alone, do you hear? I'll kill you if you take that away! Oh ... you're hurting me! God damn you! I'll ... I'll ..." And here her words ran into one another, becoming unintelligible expostulations of hatred.

I suppose I did hurt her a bit; but it was absolutely necessary. In the mood she was in, I was afraid either that she might attack herself with the knife or use it against me. In any case, her being in possession of the thing was a decided menace.

To anyone outside who might have heard Anita's words, it would undoubtedly seem that she really and truly despised me; I myself put no stock in them. I was sure that her fit of temper was but a phase of her physical condition and that she didn't mean any of the mean things she said about me. You must know then that Anita was menstruating that night and do not forget that earlier that very day she had had two teeth extracted. What she had gone through was enough to make any woman fly off the handle.

I thought that if I could get the knife away from her and put her to bed, in the morning everything would be peaceful again. She was still screaming and clawing at my chest like some enraged lioness when I finally managed to remove the dangerously sharp knife from her fingers.

Then, to my dismay, the doorbell rang.

Anita stopped her noise at once. Together we looked stupidly at one another. Then she nodded that I should go and see who was outside. The ringing of the bell evidently calmed her hysteria for, as though thoroughly done in, she sank into a chair as I moved reluctantly toward the front door, absent-mindedly dangling the captured knife from one hand.

Well, young Tom Murphy saw that carving-knife and he could not have helped hearing all the screaming as he came up the walk. He gave me a searching look as he handed me the package containing the sleeping draught.

"Here you are, Mr. Thatcher," he said. "This ought to do the trick."

I accepted the package with the hand that held the knife, thanked him in a hollow voice, and he hurried away as though he was anxious to get out of the vicinity.

When I got back to the kitchen, Anita was opening a large bottle of beer which we were accustomed to drink after dinner during the hot weather. She poured out two glasses recklessly, the foam spilling onto the tablecloth.

"It's a sleeping powder, Anita," I said, opening the packet and placing the little fold of paper near her hand. "Your tooth may ache. Good idea to drop it in your beer."

She gave no sign that she heard me. Although she had stopped crying, there was a wet shine to her eyes that I didn't like. In her silence I could feel repressed a stony hatred for me and it absolutely took away what few regrets I had regarding the store I was now so firmly resolved to sell. Why I didn't tell her of my change of heart, I do not know. Maybe if I had, things would have turned out differently. However, I thought that if I waited until morning, Anita would be in a more receptive mood. At the moment she was in a very unbalanced state and the subject was one which would have to be handled delicately. If I came right out and admitted defeat she might think

that her weeping and wailing had affected me. I did not want her to know that; she might employ those tactics to wheedle me in the future.

I made my way into the living-room in search of the evening paper. Somehow it had found its way under one of the sofa pillows so that it was almost five minutes before I returned with it to the kitchen. Anita was no longer in the room. One of the beer glasses was empty and the sleeping powder paper was crumbled into a tiny ball beside it.

"Ah, she has taken it," I thought to myself, glad that the remainder of the evening would be unspoiled by such scenes as had taken place at dinner.

Through the back window I could see Anita sitting woodenly on a camp-chair, facing the lake. It looked so very peaceful out of doors with the soft hand of twilight caressing the great trees, the ragged lawn and the lake itself. It reminded me of the war, strangely enough. After a heavy bombardment, when the firing ceased an unearthly stillness seemed to shriek in one's ears and the relief of it all was enough to drive one mad with happiness. And as I stared out of the window, I was happy. The storm had blown over and, if I had anything to do with causing it, it would never come again.

With my glass of beer and my paper, I retired to the living-room. I would have liked to sit outside with Anita but I did not wish to risk any repetition of the quarrel. I was sure that she wanted to be alone and I knew how unpleasant it was to have one's solitude trespassed upon. So I made up my mind to let her alone. In the morning I would tell her of my surrender, trying to make it sound as if it were my own wish and not hers, and everything would be forgotten. We would dispose of the store, the house, and all of the furniture which was sadly out of date anyway. In New York we would start our lives all over again.

Curiously, I began to anticipate making this fresh start with pleasure. After all, Ithaca had not been very kind to us. True, we had made a good living there, but we had had our scraps as well; and since our marriage the war had forced its way between the two of us, brandishing its most cruel weapon: estrangement.

And the business I had built up out of nothing and struggled to keep; what had it brought me? Trying to hold on to it in the face of Anita's objections

was a pyrrhic victory, a triumph as empty as the war. My most precious possession, I told myself, was Anita's love. The rest was only just so much baggage.

These thoughts ran through my mind, bringing with them a conviction that I had been a fool. When I took Anita as my wife I promised myself that I would make her happy.

Before I finished my beer or as much as read two columns of the newspaper, I dropped into a deep sleep.

Now I come to the part of the story that is difficult to relate. During the following hours I was still drowsy and feeling quite ill; then again, it all happened so suddenly that before I actually became aware of what was taking place, I found myself cooling my heels in the Ithaca jail.

I suppose I even looked guilty. Real emotions hardly ever seem real. Stage performances have taken the edge off of them and stylized both physical and mental reactions to such a degree that if a faint is not executed in a certain way it looks bogus. My shocked expression, throughout these proceedings I here set down, no doubt impressed the police as being a very amateur affectation, attempted by me to conceal my obvious guilt. I even heard one of the cell attendants informing someone that I was "going to play nuts."

If the following account of the morning I woke up sounds like a falsehood, remember that it has since been proved the truth.

It seemed to me that I had merely drifted off for a few minutes but when I finally opened my eyes a bright morning sun was shining. So brilliant was it that I was momentarily blinded and confused. I started to rise from the chair but succeeded only in stumbling to the floor. My legs were numb and my head felt inflated, like some child's balloon. Before I could pick myself up from where I had fallen, I became conscious that the doorbell was ringing. It was an insistent ring, as though someone was belaboring the button in short, angry jabs.

Still half asleep, I staggered to the door and opened it. I rubbed my eyes, squinting up into the ruddy face of one of the town's constables. It was Richter.

"Sorry to get you up, Thatcher," he greeted me with apologetic gruffness. "Say! You must have had one too many last night, eh?"

"Hello, Captain. My God, what time is it?"

"Almost ten. Young Murphy's going crazy down there at the store. Business is certainly good this morning." He paused and fumbled in his cap for a paper. "Say, Thatcher, I've got some bad news for you. I'm afraid I'll have to bring you around to the station."

This opened my eyes. Please believe that up until that time I had never had any encounters with the police, having always been careful not to violate any of the ordinances with the possible exception of Prohibition. "What have I done, Captain? Murdered someone?" I asked.

He laughed good-humoredly. "No. But you should have, while you were at it. It's that Mackintosh kid. His old man swore out a warrant for your arrest on a charge of assaulting his brat. I don't know if it's true or not, but by God I'd like to assault him myself sometimes."

"But look here, Captain," I protested. "I only..."

"I know it's a damned nuisance. But orders, you know. The judge is a pretty decent sort and he'll probably give you a medal. Better get your hat."

I shrugged my shoulders helplessly and told the constable to make himself comfortable on the porch while I got myself ready. Since I was so late for work anyhow, a little longer would make no difference. I was positive, that when I made it clear to whomever was going to hear the case exactly why I spanked Jackie, everything would be all right.

As I turned to go inside, I felt Richter touch my sleeve. "Good Lord, Thatcher! What did you do? Cut yourself?"

"Why no," I answered, puzzled. "What makes you say that?"

He pointed a finger at my trousers and, looking down at them, I saw that they were stained with red! I stood there dumbfounded with my mouth hanging open.

"That's blood all right," I heard the policeman mutter. "Yes, sir. That's blood. But where in hell did it come from?"

Instantly I thought of the night just past. My mind was quick to grasp the situation and it evoked a vivid picture of Anita, standing with the carving-knife in her hand and threatening....

"Anita!" I shouted hoarsely and with my heart in my mouth I ran into the house. I could hear Richter behind me, his ponderous weight making the old floor-boards vibrate under my feet.

I saw then that the living-room was a shambles. A table was overturned, two lamps lay shattered on the carpet and everywhere were reddish smears that looked suspiciously like bloodstains. In the kitchen we found still more blood and a bloody apron of Anita's lying on the table, still set with the dirty dinner dishes. On the apron we found the carving-knife ... its blade a mess of crusted blood!

In the face of all this horror, it is a wonder I didn't faint. However, even so, it is impossible for me to describe my feelings of that morning. Of course I was certain at once that Anita had committed suicide, had severed her veins or something equally terrible. But on racing through the rooms of the house, we could find no trace of her. Only some clothes and the two teeth she had tossed onto the table during dinner the night before spoke of her ever having been there.

My frantic fear for Anita temporarily dulled my wits so that it was not until the constable and I had picked about in the dark cellar for some time that I remembered seeing Anita last sitting in the garden. I seized the policeman's arm and all but pulled him up the stairs, through the back hall and outside.

But Anita was nowhere to be found. We searched the grounds thoroughly. The camp-chair, where last I had seen her, was empty, the canvas back of it still sagging from the weight of her shoulders. But, to our horror, from the back porch to the very edge of the lake ran a dark, repulsive trail of what was undoubtedly blood! In places there were merely a few drops on the taller tufts of grass, hardly visible to the eye; but mostly the awful trail ran wide....

"She's thrown herself in!" I gasped. "My God, Captain! What can we do?"

I burst into tears, something I hadn't done for many, many years. The constable waited in silence for me to control myself. He didn't try to comfort me.

"Oh, Anita!" I cried. "Why did you do it? Oh, why did you do it?"

Richter spit into the lake. "That's what I'd like to know, Thatcher," he said curtly. He was looking at me closely, his brows knit into a frown.

"Why, what do you mean, Richter?" I asked.

"Oh, cut out that innocent stuff!" he growled disgustedly. "You know damned well what I mean."

I assured him that I did not. He surely wasn't insinuating that I... Why the idea was absurd! Nevertheless, absurd or not, I saw the constable's face stubbornly set.

"You don't believe that she committed suicide?" I asked in confusion. "Is it possible that she's still alive?" I stepped toward him and seized the front of his uniform blouse. "Tell me what you're thinking!" I demanded hysterically.

"Alive hell!" was his comment and I suddenly felt my wrist encircled by a steel cuff which clicked shut and pinched my skin. "I don't know where you've hidden her, Thatcher, but she didn't commit no suicide!"

"No?"

"No. You better get yourself an alibi. How did you get that blood on your pants?"

"I don't know!"

"Well for your own good you'd better find out."

"But Anita...."

"Oh, we'll fish her out all right. But not now." Richter tugged at the bracelets. "I ain't got my water-wings with me. Come on," he added out of the corner of his mouth as he led me away from the lake shore.

I went along with him dazedly. There was nothing else I could do.

My trial was held in the Tompkins County Court house in Ithaca. The State was represented by an obnoxious little Assistant District Attorney who, nevertheless, I am forced to admit, handled his side of the case magnificently. Point by point he scored tellingly until he had almost convinced even me that I had done away with Anita.

For the terrible part of it all was that I couldn't be quite sure whether I had or not. As Assistant District Attorney Blackman pointed out, I could very easily have committed the crime during one of my unfortunate lapses of memory. True, this souvenir of the war had not recurred since I was discharged from the hospital months before, but there was no evidence to prove that it *couldn't* recur.

So when old Doc Turnbull, who visited me in my cell before the trial, remarked kindly that he was sure I hadn't done it, I replied in despair: "But that's just it! How can you say I didn't kill her when I don't even know myself?"

Unless my periodic amnesia was coupled with an unreasonable dementia, there was no motive for my killing Anita—as far as I was concerned. Gilberte's letter which I never read and which the State offered in evidence, had had nothing to do with it. I certainly did not murder Anita for Gilberte or for any other woman. Nevertheless, the translation of the letter in court did sound bad. Blackman read it aloud, punctuating each sentence with a knowing glance toward the jury and stressing certain words and phrases which, I am sure, Gilberte had never meant to be stressed.

Translated, it ran something like the following:

August 8, 1919

Dearest Peter,

Perhaps I should not write to you ... but you forgot to forbid it. It seems so long ago that we parted in the garden! I sit there seldom nowadays because invariably it evokes sad memories and I do not wish to think about you. That would be sheer masochism, nothing more. Oh, Peter, if only you knew how wretched I am! By now you are with your wife, *pretending* that you are happy. For you are pretending, you know. You can't possibly be happy with that woman. From

what you have told me about her, I am sure that she doesn't care for you ... at least not half as much as I do. That is the terrible part about life: the people who love are rarely loved in return. Sometimes I find myself dreaming that one morning you will awake and find her gone ... run off with another man or—yes, you've guessed it—dead. With her out of the way, I know that you'd come back to me, wouldn't you, Peter? But it is just a dream. I cannot hope for so simple a solution to my problem ... the problem that is turning me from a young girl into a sour old woman. I suppose it is useless to ask you to write. You will, as always, follow the dictates of your heart.

Your miserable,
Gilberte.

Sitting there day after day in court, I watched the chain of circumstantial evidence grow stronger. After each witness testified, I saw the worried frown upon the face of my lawyer deepen. He was a very conscientious chap, Mr. Bristol; and I am sure he believed me absolutely innocent. If this was so, he was the only person, aside from Doctor Turnbull, who did.

They subpoenaed my assistant, Tom Murphy, who grudgingly admitted that he had heard Anita and me quarreling; had seen the carving-knife—State's Exhibit C—in my hand when I answered the door; and that he had delivered to me, at my request, a potent compound of sodium amytal upon the night in question.

"Did you hear any of the words, Mr. Murphy?"

"Yes, I'm afraid I did. I heard her scream...."

"Go on, Mr. Murphy. What did she scream?"

"I heard her yelling that he was hurting her."

The prosecution then went on to establish that I had been in a rare fury all through the day of August 20th. They called Mrs. Wainscott and Mr. and Mrs. Mackintosh to the stand. The last mentioned witness so deftly misused her words that the jury was left with the impression that I had drawn and quartered her precious Jackie instead of mildly spanked him.

Next, to my astonishment, Anita's extracted teeth were offered in evidence. The prosecution suggested that I had knocked them loose from her mouth with an angry blow!

Photographs depicting the scene of the crime, the wrecked kitchen and living-room, the preponderance of blood and the gory trail to the lake shore made the jury shudder and glance at me as though I were some grotesque curiosity. The blood-encrusted carving-knife; a torn, blood-soaked dress of Anita's which I had not been shown before; and my own stained trousers completed the major points of the State's case.

But they were unable to produce a *corpus delicti*.

Counsellor Bristol made much of this; it was his entire case, in fact. "How can there be a murder," he demanded, "without someone getting killed? And if someone was killed, who has seen the body? Lord Hale and Sir Edward Coke, those world-famous interpreters of law, positively forbid convictions unless the fact of murder has been proven. A *corpus delicti* must be established! And to establish the same, there must first be a body and proof that the deceased perished by a criminal agency. It is easy to understand why these precautions must be taken. To quote Blackstone: 'It is far better that ten guilty escape than one innocent man be punished and made to suffer for naught.' In this case, there were no eye-witnesses to the crime ... if such a crime did actually take place. How then can we assume that on the night of August the twentieth this man did feloniously assault and kill his wife? The State has produced slim evidence indeed that this man was in love with another woman! From the letter, State's Exhibit B, it is admitted that the woman was in love with the Defendant. But by what evidence can the State prove that my client reciprocated her feelings? As a matter of fact, is it not more logical to suppose that, if my client really loved this woman, he would not have returned to his wife at all? The State has proved nothing of any importance. They have placed many articles in evidence but they have not proved, within the faintest shadow of a doubt, that these were used to commit a crime. The very weapon, this blood-stained knife, which the State presumes was the death agent; by what right can my worthy opponent claim such was the case? How does he know that death was not brought about by poison, by strangulation, by a pistol? How does he know there has been a death at all? Certainly there is nothing more innocuous than a sleeping powder! How has the State shown that it was used to drug a victim

in order that murder might be done without a struggle? And regarding the heated quarrel the State makes so much of: does every petty argument between husband and wife always lead to violence and homicide? Show me the man who has never had words with his wife! And take note of this, gentlemen of the jury. A man administers a much-deserved spanking; does that label him a potential killer? If that were so, how many parents would now be languishing in prisons! I have said before, and I will say again, that it is up to the prosecution to prove my client guilty. He is not required to prove his innocence! Has the State done so? Have they proved that Peter Thatcher lies when he says that the teeth, marked State's Exhibit D, were extracted by a New York City dentist? There is no case here!"

When my lawyer had finished summing up, Assistant District Attorney Blackman got to his feet. "The overwhelming evidence of murder in this case," he began, "is quite sufficient for us to presume death. By the trail of blood leading down to the shore of the lake, we can be certain, within the faintest shadow of a doubt, that the body was dragged there and thrown in, perhaps weighted down with stones. It is difficult to recover a body thus disposed of. The shifting currents of any large body of water, particularly a so-called bottomless lake like Cayuga, will oftentimes carry whatever has been thrown in, back and forth. If the body is weighted, it is possible that it may never be recovered." Blackman paused, pointed an accusing finger in my direction, and then went on in a grand manner. "Are we to allow a murderer to go unpunished because he has been clever enough to successfully destroy the evidence of his guilt? Picture for yourselves, gentlemen of the jury, what chaos would come if we established such a precedent here in this courtroom! A fiend could commit a murder on the high seas, before a hundred witnesses, and, tossing his victim over the rail, laugh at our courts if the body was not recovered! Here we have a man, a person *known* to have suffered mental relapses due to shell-shock; *known* to have engaged in a furious battle with his wife; *seen* with this same knife, now covered with blood, in his hand by one of the witnesses who inadvertently interrupted the fight; *caught* by an officer of the law, whose testimony you heard; and *clad* in these bloody trousers! What more can you ask? You have heard read a passionate appeal from this man's mistress that he kill his wife and return to her side. The Defendant swears that he was unable to read that letter. Do you believe that? Would that woman have written so dangerous a letter to him in a language she knew he could not

understand—*without getting someone to translate it for him?* You know that the Defendant sent his victim into New York City on the afternoon of August the twentieth. Isn't it logical to suppose that, in view of the evidence, he did this to get her out of the way so that he might more carefully set the scene for his heinous deed? You have heard sworn testimony to the fact that Peter Thatcher ordered a sleeping powder—ostensibly because his wife's teeth were giving her trouble. Yet, we are unable to extract from him the name of the dentist he claims she visited! Is it logical to suppose that a man would be ignorant of the identity of his wife's dentist? Can we not safely assume that the sleeping powder was intended—no, was actually employed—for quite another purpose? We must not overlook the fact that the Defendant was making use of a potent drug, the use of which is forbidden unless upon a physician's written prescription. And furthermore, gentlemen, remember that the Defendant, when I frankly questioned him, *did not even bother to deny that he was guilty of the charges as set forth in the indictment!* To the question, 'Peter Thatcher, didn't you drug and kill your wife on the night of August the twentieth, using this knife as a weapon and later disposing of the body, by throwing it into the lake?' he replied: 'I don't know! I really don't know! There was no reason why I should have killed her!'" Here, the Assistant District Attorney waxed violent. He pounded emphatically upon the jury-box rail. "Is that the answer an innocent man would make? Is it? Can we, as citizens engaged in meting out justice, possibly free a man who is not himself convinced of his own innocence? How can there remain the slightest doubt but that somewhere in the chill waters of Lake Cayuga floats submerged the ghastly remains of the young wife Peter Thatcher so ruthlessly slew in order that he might return to the obviously depraved woman he really loved! Are we to permit this? You have noticed that the Defense is based only upon one detail: that the forces of Nature have prevented us from establishing the missing corpse. With the body of the woman, we would have a clear case. *But*, are we so blind, so idiotic, so unwilling to be intelligent that we must, like Doubting Thomas, peer into the very wounds? Cannot even a child perceive that a murder has been committed and that the perpetrator has been apprehended and brought to justice? This man, Peter Thatcher, claims that he loved his wife and that she loved him. If this is so, and he did not brutally murder her, I ask the Defense just one thing: *Where is Anita Hunt Thatcher?"*

The jury went out on September the second. They remained locked up for five and a half hours. During this time, I was taken back to my cell where my lawyer, Mr. Bristol, gave me a good talking to.

"You see," he ranted. "What did I tell you? When the District Attorney asked you if you killed her, you should have denied it!"

"But how do I know I didn't?" I asked him.

"How do you know you did?" he countered sourly. "It's a good thing that they're not entitled to convict without establishing the body ... or you'd be sunk!"

I looked up into Bristol's face anxiously. "Can't they do anything to me?"

The lawyer pulled at the roots of his hair and rolled his eyes upward in despair. "Don't be an ass, Thatcher! Anything can happen if the jury wants it to. If they take a fancy to you or believe that you're innocent; the State can produce a hundred bodies, your signed and notarized confession, even a picture of you committing the crime! You'd still be acquitted!" He began to pace the floor distractedly. I really believe that he was more nervous about the verdict than I was.

This might be a good time to mention how I happened to engage Mr. Bristol to handle my defense. He came to me, highly recommended by my old friend Mrs. Michaelson, who was taking a great interest in the case. Knowing very well that I had never had any large amount of ready cash, she informed me that Bristol would be willing to represent me without a retainer. I gratefully clutched at this opportunity, you may be sure; and I at once engaged him. However, Mrs. Michaelson's information proved quite inaccurate. Before the trial came up on the calendar of Judge Foley, Counsellor Bristol was in possession not only of four hundred dollars of my money, but of the deed to my home as well.

I did not begrudge him this. First of all, I knew that with Anita gone, I could never bring myself to enter that house again. Under its roof brooded a secret which I might never be able to uncover. Every nook and cranny of the place would taunt me. If I tried to live there in the future, I would most certainly go mad. In the event that I was exonerated of the charges against me, I was

only too keenly aware that my life could not continue without some radical change of course. Ithaca would never accept me again; there were bound to be people who would think me guilty; and my business was sure to suffer commensurate losses. Then, too, I would be faced with memories there: persons who had known her, walls which had once enclosed her, shops she had been accustomed to patronize.

It was of no use, you see. Anita's passing carried me along as though in an unbreakable death hold; and so bewildered was I, that I was almost wishing that I would not be acquitted. I would be at a loss what to do.

Of course the people from my home town were all very nice to me. Mrs. Michaelson and Doctor Turnbull and several others came down to see me, bringing little gifts of candy and cigarettes, and trying their utmost to cheer me up. But these few were really the only friends I had. To most of Ithaca's inhabitants, I was merely a familiar face, an inanimate object that fetched what they demanded, like a retriever.

The newspapers did not make much of the case. On the evening of August 21st, the day of my arrest, a short column was all that appeared in the New York City sheets. The local paper, of course, came out with banner headlines which read: DRUGGIST HELD FOR HOMICIDE. In the sub-headings, and there were fully four of them, came the usual journalistic hyperboles, and reading about myself and my affairs was quite puzzling. Yes, indeed. To my amazement, I was described as prosperous, handsome and popular! My little house and unpretentious grounds were declared an estate! In fact, the only thing that the papers did not grossly exaggerate and distort out of all proportion was Anita's loveliness. "The body of beautiful Anita Thatcher has not as yet been recovered," the *Journal-News* announced, "but the police are confident that within twenty-four hours ... etc., etc...."

While my mind wandered back over the events that had transpired since my sudden arrest, my lawyer continued to pace up and down, striking his hands together frequently and muttering under his breath. "Yes," he would reiterate, as though to convince himself, "they're not entitled to convict you without a *corpus delicti*. How can there possibly be a conviction for murder without proof that someone died?" He came to a halt in front of me and looked down at me as I lay full-length upon the cot. I could see that his eyes

were troubled. "The worst they could do would be to find you guilty of manslaughter. They haven't established the weapon; neither have they proved premeditation. But juries are funny," he went on, shaking his head dubiously from side to side. "They do what they want."

"Oh," I murmured, although I could not understand why that should be permitted. It did not seem quite right that humans should judge humans and wield the power of life and death which, according to the theologians, should be vested solely in Divinity.

"Blackman scored a good point," glumly admitted my attorney, "when he demanded to know the whereabouts of your wife. I'd give a thousand dollars to know that! Look, Thatcher, can't you try and think...."

I sighed wearily. He had asked me the same thing at least ten times before. "It's no use. I've tried, Mr. Bristol. There was absolutely no reason for her to disappear. Besides ... how about that blood?"

Bristol grunted his disappointment. "Yes, that's right. I keep forgetting. Oh, no doubt she's dead all right. But who killed her? You didn't."

"No?" I asked earnestly.

"I give up! You're impossible, man! How in hell can I defend you if you talk like that?" The lawyer strode angrily to the cell door and shouted for the turnkey to let him out.

"Are you going up?" I asked disinterestedly. The way I was feeling then, I didn't care what he did.

"I suppose so," was the vexed reply. "The jury can't stay out much longer. There's a rumor circulating in the court that they stand eight to four for acquittal. But you know how those things are. Only God and the jury can verify it."

When the cell door had clanged shut behind him and his footsteps had died away in the distance, I got up from the cot and began to pace a bit myself. I felt utterly miserable. Anita's face kept coming back to haunt me. Although I could not be certain that I was guilty, I felt like a murderer. I felt like one of those ugly newspaper portraits plastered under, above and between the lurid headlines I had so often read during the quiet evenings in my garden. I began to think that I *must* have killed her. For I had taken a life once before,

if you remember. Was it not logical to suppose that I had plunged the carving-knife into Anita just as I had done to the German boy a year before?

But why?

Why indeed! Must there be a reason for everything, I asked myself. If I had worn my uniform would I have been legally entitled to kill Anita? If the knife had not been a carving-knife, but a trench-knife or a bayonet stamped: PROPERTY OF THE UNITED STATES OF AMERICA, would I now be freed? Would Carter have nodded his head and the Sarge patted me on the back?

These hysterical thoughts, these unanswerable questions, these incoherent emanations of a tortured brain kept me occupied while I waited for twelve strange men to decide my fate.

But, unbelievable as it sounds, I was not so much interested in the verdict—which might even mean my execution—as I was in finding out whether or not I had been instrumental in bringing about my beloved wife's end. That she was dead, I had no doubt. But was I her murderer?

Footsteps sounded in the corridor. They approached and stopped before my cell. "Come on, Thatcher," I heard the turnkey say. "The jury's come in." When, at last, he had delivered me into the custody of two tall deputies, he added: "Good luck, buddy. And whatever it is, take it standing up."

"Gentlemen, have you reached a verdict?"

"We have, Your Honor."

"Please read it."

The sound of a throat being cleared reached my ears through a peculiar ringing noise I was unable to catalogue. The courtroom began to spin before me and only a vague impression of strange faces and dark wooden benches remains even now.

"We, the jury, find the Defendant, Peter Thatcher...."

I took it standing up.

PART THREE

THE FRUIT

Prison! I spent eighteen years of my life there. Only it wasn't life, nor even an existence. Without exaggeration, I think that I can justly call it hell. For while my physical body was hammering away at unyielding bars and at the bare walls which held me captive, my mind bruised as it battered itself upon its own uncertainty. By this, I do not mean to corroborate the press statements which suggest that I possess "the warped mind of a killer." I know that I am not insane; but the mark of those years can never be erased.

Unfortunately, there is no way I can find to adequately describe my suffering. But then I am reasonably certain that even the great Russian masters of tragedy—Tolstoi, Maxim Gorki, Dostoievski—would be quick to perceive the emptiness of their words in the telling of my story and would probably throw down their pens in despair. So I will say again that it was simply hell ... the hell of living with my own self and hating it; and tormenting myself with hopelessly unsolvable problems. Even the war that I had managed to survive, with its ever-present threat of pain or death, cannot be compared to the eighteen years I was imprisoned. And that, you will admit, coming from me, is saying something!

By far my favorite book since I first stumbled upon it at the age of twelve or thirteen in my father's library, is Dumas' masterpiece, *The Count of Monte Cristo*. I have read it through many, many times and have never grown tired of it. Even during my term at Sing Sing, I took it out of the prison library at least four or five different times. My cellmates, Bernie Dunbar and "Cupid" Moran, commented upon this. "Say, Pete, ain't that the one you had out last year?" I admitted that it was and persuaded Bernie to read it. "Cupid," after I had given him a brief synopsis of the plot, disgustingly refused to "waste his time with such crap." This rather surprised me. I remembered that "Cupid" was in for life. However, he assured me in no uncertain terms that the Chateau d'If was no worse than some of the "cans" he had been in; that Dantes was a fool for not having hired a smart

"mouthpiece" who might have been able to "spring him on a writ"; and that he had never heard of anyone getting by with "a gag like playing dead." But Bernie liked the book very much.

And while my hair did not turn gray and I grew no long beard and I did not spend all of my leisure hours plotting an escape, I feel that I had very much in common with Edmond Dantes. Both of us had left a woman on the outside; both of us had been in love. I think, though—and in all fairness to Dumas' hero—that I suffered the more; for his girl still lived while mine was dead. Moreover, Dantes was not an alleged slayer.

How often did I thump my forehead and try to jar from it some seemingly unimportant fact which might establish either my innocence or my guilt! It would not have made much difference if a jury believed ... just as long as I did.

I had better explain why, since my sentence only called for a maximum of fifteen years, I served three in addition. These were imposed upon me for my part in a scheme to break out. Although I feverishly desired freedom—if for no other reason but to find out whether or not I had really killed Anita—I had no desire to brave the inevitable peril of getting shot. Besides, the plan as it was explained to me by Paul Comstock and "Cupid," seemed utterly foolhardy and impossible. But "Cupid" threatened to "push my face in" if I refused to do what he asked and, remembering that this cellmate of mine had been a prominent gunman in underworld circles, I reluctantly agreed to help out.

It happened that Bernie Dunbar was nearing the end of his stretch. On December 18th—I think it was in the year 1926—he was scheduled to be released. The plan was that he should purchase a speedboat, with funds "Cupid's" mother would provide, and station himself as close to the prison as possible during the week immediately following Christmas. The theory that the guards were paying little attention to the river during the cold weather seemed to assure them of an easy escape. It would prove a cold swim, but the two were determined to take a chance.

I never found out just how they planned to get out of the prison and down to the river. It seemed unfeasible, what with all the high walls, the flood-lights and the guard-towers; and I guess they didn't trust me enough to tell. When I asked "Cupid," he merely winked significantly and announced that "five

hundred berries goes a long way." Hence, long having been a bookworm, I imagined stealthy slinking in the shadows of the walls, wholesale slaughter of guards with smuggled pistols equipped with silencers, and lightning, one-minute changes into prison officials' uniforms.

I was not to take part in the actual escape—for which I was inwardly thankful. My reward was to be a crafty underworld lawyer who would appeal my case gratis or pull some mysterious political strings with the Parole Board. In either case, they told me, I could not fail "to be out in no time." It occurred to me that if this was so, it was curious that Bernie, "Cupid" and Paul were in prison at all. But I was shrewd enough to keep my mouth shut. Except for Bernie—who, by the way, never purchased the boat—they are in prison yet.

However, since I was needed in the scheme, I had no choice in the matter. At a given hour, I was to faint or otherwise act very ill. If necessary, I was to thrust a finger down my throat so that I would vomit. When the guards came to remove me to the infirmary, the machine of escape was to be put into action.

"You don't need to worry none," "Cupid" laughed when I expressed the fear that there would be shooting in the cell. "Them guards what are coming are O.K. They're wise and they'll take the count like a gymnasium cowboy with a ten-spot in his glove. Just do like we told you and it'll be as smooth as silk. Yeah. Smooth as silk."

Well, it went smooth as silk. The night arrived and I played sick and the guards came and "Cupid" tried to slug them. Two minutes later, "Cupid" was removed to the prison infirmary instead of me. I was placed in solitary confinement and, since the one guard "Cupid" had managed to hit suffered a slight concussion, I was made to serve three additional years. Paul Comstock, whom "Cupid" was to have released after dispensing with the guards, was never discovered to be a part of the plot. This seemed to me to be rather unfair. I drew the conclusion that Justice was not alone blind, but stupid as well.

Prison, or at least the one I was in, was not very much like the movies, books and plays would have you believe. They would have you look upon it as a living death, with the idea of hoping to discourage potential criminals from embarking upon dishonest careers. This is not true. In all of my eighteen years, I saw no deliberate cruelty. True, I saw a few men handled roughly upon occasion; but in every case this treatment was merited. In Sing Sing, perhaps due to Warden Lawes' admirable innovations, no man is abused if he behaves himself, and no guard will molest a prisoner without justification. Moreover, life is made as bearable for the inmates as possible. Vocations are taught, athletics encouraged, and conditions are made as sanitary and as pleasant as yearly appropriations will permit.

Of course the absence of women companions makes men restless and unhappy. Sex preys upon the minds of the prisoners far more than the sins they are being punished for and the fact that they are no longer free men. Very often insanity results, or perversions and unclean habits are substituted for the normal act of intercourse. This, sadly, is a prevalent practice in all penal institutions and there is nothing that can be done about it. Pains are taken, of course, to segregate those men who have succumbed to various forms of sexual perversion; but it is not rare that a prisoner who begins his sentence normal, ends up quite the reverse. This, in my own humble opinion, is the greatest problem prison officials have still to face.

The desire for women is intensified by the knowledge that they are beyond reach. For myself, I make no pretence that I am of a higher moral fabric than other men. At first I thought that I would lose my mind, so violent was my need for a woman. And in my head, melodramatic as it may sound, there seemed to be a constant beating of drums, throbbing pains that grew more acute and frequent as weeks slipped by. Then, set it down as madness, Gilberte came to me. I tried to fight her memory as she emerged from the obscurity into which my idiocy had plunged her. As I lay on my hard bunk, I tried desperately to replace her vision by thinking of Anita. But Anita, I knew, was dead and during these spells I found it difficult to remember what she looked like.

So, in a semi-conscious state, I felt Gilberte's hand touch my brow and I would suddenly find myself back in France, in the hospital garden. The odor of the flower beds filled my nostrils once more, superimposed upon the fumes of antiseptics and the stench of decaying flesh. In that trance

would I relive many moments and over and over would I succumb to the beauty of that one mistake we made.

In the morning when I awakened, I felt much refreshed. I no longer cared that I was in prison for I knew that the dream would come again; this became an obsession with me. But I came to dread the days; my mind was preoccupied with thoughts of Anita.

This is what makes of prison the hell I have named it. Naturally, I consider my own case the most harrowing, but it is very possible that many other convicts suffered equally—if for some other reason. For prison forces men to live with themselves and with their own dark thoughts. It removes the healing ointment of outside diversions: people, changes of scene, any number of things which might help men to forget the past. Now, you can understand why it was doubly bad in my particular case. There was also this: I could not convince myself that I had really murdered my wife, and there was no way I could uncover the truth—my innocence or my guilt—while locked up in a cell.

All through those eighteen years—from the time I went in at the age of twenty-eight, until I grew to be forty-six—I was constantly plagued by the need of knowing the truth. In the prison shop, no matter what job was assigned to me, I took no interest. No activity could provide the answer I so fervently craved. In the yard, the mess hall, the cell-block, Anita's face followed me.

My cellmate, Bernie Dunbar, tried his best to drive out my morbid thoughts. He was a very young man, two or three years my junior. His face was tanned and handsome and, even after eight years, he had not developed what the novelists are pleased to term "prison pallor." His crime was that of robbery and assault with a deadly weapon.

"It wasn't really deadly," Bernie told me, "unless you can call a blank-cartridge pistol a deadly weapon. I stuck up a drugstore. I didn't want to hurt anybody. All I wanted was dough. But when I told the fellow behind the counter to open up the safe, the damned fool started yelling for the cops. Well, what could I do? Stand there and get pinched? I conked him with the butt of the thing and he took a nose-dive."

I made the observation that such a blow might easily cause death. Being myself a druggist, I felt that I should take sides against Bernie. Consequently, when he sighed, shrugged helplessly and asked, "Well, what would *you* have done?" I forgot that he was putting me in *his* position and replied, "I would have shouted for the police, too." But, come to think of it, I do not believe I would have done any such thing. Always having carefully preserved my health, undoubtedly I would have opened the safe.

Bernie's method in trying to comfort me was to give detailed accounts of what awful fates awaited many of the other prisoners. He seemed well acquainted with the other inmates of the prison and, in the course of three or four years, succeeded in telling me many ghastly tales. Although he assured me that the stories were all true, I thought some of them sounded somewhat extreme and implausible.

"You know that guy, Barstowe, in the death house? He chopped his mother and father to pieces with an axe. He wanted the insurance money, I guess. And to make it look like someone else had done it, he chopped off one of his own hands. He would have got away with it too, only the damned fool left his finger-prints all over the handle of the thing."

Then: "You know Middleton? He poisoned his girl only she didn't die. Was he burned up! She testified in court and he's in here for twenty years. He told me that he wouldn't have minded serving time, if he had done the job right."

Also: "You know Frank Juliano? As soon as he's finished his stretch here, they've got something else to pin on him. Say, if that boy *ever* gets out of jail, it'll be a miracle. And you, kicking about your troubles! Why, any day they might find out you didn't knock her off and you'll get sprung. But that guy has *nothing* to look forward to!"

One day "Cupid," who was usually silent, broke into the conversation. "Yeah? And look at me. I'm here for life. Of course that don't mean forever. I may get paroled in about fifteen or twenty years. But what the hell. I'll be sixty years old! What in Christ's name can a guy do when he's sixty?"

I pretended to sympathize with "Cupid." So did Bernie, for that matter. But in my heart I believed that the world was much better off with "Cupid" under lock and key. He was one of those habitual cases. He was possessed

of an inhuman courage that was almost brutishly stupid. Bullets, police, and fellow criminals failed to impress him; for "Cupid" was not intelligent enough to be afraid. Once released, he was certain to re-embark upon his life of crime. And his record, at the time I knew him, was literally dotted with robberies, killings, kidnappings and terms in innumerable penitentiaries. You may be sure that I took pains never to get on the wrong side of this one-man crime wave.

But, despite all Bernie's efforts, I could not forget. Often at night I would have nightmares in which Anita's body would suddenly materialize before me, bloody and full of gaping wounds. Twice, in the throes of these horrible dreams, I rolled off the upper bunk, injuring myself considerably on the cement floor of the cell. Bernie, sympathetic, was gracious enough to change bunks with me, permitting me to take the coveted lower. Even after the change, the nightmares continued. The first night I occupied my new bed, I rolled off again. The fall, from less altitude, did not hurt me much, but it woke up Cupid. He hoisted himself out of bed, seized me roughly by the front of my undershirt, and dealt me a heavy blow on the point of my jaw. Although I landed on my bunk, I was unconscious for over a minute. When I came to, "Cupid" jerked me to my feet and waved his big ham of a fist under my nose.

"Spoil my night's sleep again, you little son of a bitch, and I'll pin your ears back!"

The dreams kept returning each night, but I made sure that I wouldn't fall again. I slept with one wrist caught in the framework of the bunk.

Anita's body was never found. Several bodies were discovered floating in the lake by the police during the years, but not one of them in any way resembled her. Obviously, without the corpse, no hint as to the identity of her slayer could be investigated; and there was no reason why any other opinion should be formed but that I had committed the crime. Accordingly, after the first year of my incarceration, my lawyer, Mr. Bristol, lost all interest in the case. No appeal was ever made in my behalf.

Incidentally, I sold my store, too. With the money I got from The Great Eastern Chain, I engaged the services of a private investigation bureau. This organization unearthed nothing whatever and, when my capital was exhausted, they had the colossal cheek to visit me in prison and inform me that they believed me guilty. This made me very angry. I would not have minded them telling me this if they could have shown some sort of proof. I was spending every cent I had in the world to find out—if only for my own satisfaction—that I was innocent; or—if only to rid myself of doubt—that I was guilty.

Late in the year 1930, Doc Turnbull paid me his last visit. It had been the old man's habit to come once each year to see me. Usually, it was during the summer—that being the only time he could get away from Ithaca. "Sure, son, it's like a vacation. I haven't a relative in the world, thank God, except Sarah. And, well, she's not exactly a relative. She's my wife. So the only one I can visit is you."

In spite of Doc's gruff dismissing of sentiment, I am sure that he thought of me as a son. Through the wire screen of the visiting-room, his homely words of wisdom did much to relieve the great weight I carried.

"Boy, you're looking through field glasses the wrong way. Know what I mean? Hell, no one ever got to first base in this old ball game by living in the past. To hell with yesterday, I say! Why, son, do you know how many men I've killed since I began practicing medicine? Practicing is right! I've been practicing for forty-three years! But does that bother me?"

"But Doc," I said, "if I only knew whether I did it or not! You know I loved Anita and...."

"I don't think you did do it, Pete. But what's the use of thinking about it? No one will ever find out about it now. Too much water has passed under the bridge. Forget it. You're serving time. It won't be long now until you'll be let out. Think of that."

"I am."

"Good. It's only seven years more ... less than that, if you skip Sundays. Why hell, it took me seven years to cure one case alone. The fellow was an alcoholic. Wouldn't let old demon rum alone. Do you know what my treatment was?"

"No."

"I kept drinking his stuff. Never left him much of anything. Gradually, he got used to less and less until...." Here, Doc commenced to chuckle. "... I had to take the cure myself."

Through him, I learned what little there was to know about Ithaca. "You know that Mrs. Michaelson had another heart attack? Third one, Pete. No, nothing serious yet. And say, you ought to see what they've done to your store! More chrome plate in it than a barber-shop! Can you beat it, they sell perfume and *books*! I'm dealing at Ray Cavender's now. Hate to do it, but what can a poor doctor do when he's got some prescriptions to be filled? Those Great Eastern chumps only know how to make sandwiches and sodas. And, oh yes! Remember Leo Carpenter with the blonde moustache that thought he was a doctor? Well, he's not practicing any more, I hear. He went to Vienna shortly after his old man died, you know. Said he was going to study under some of those foreign fakers. Well, Carpenter is writing books now. Medical books. I got one but I can't figure out what it's all about! Every other word is in Latin or Greek or some such uncivilized tongue! And the footnotes! One page text, three pages footnotes! But let me see, there was something else I wanted to tell you.... Sure, I know! Jackie Mackintosh is in reform school! That kid is a regular Jesse James! He robbed three Ithaca stores last summer and a grocery in Owego. They caught him, though, and he confessed."

As he left me that last time, his parting words were: "Now don't forget that there is a future coming, Pete. Turn those old field glasses around and look ahead. You're still a young man ... compared with me! And I'm still looking ahead, you bet! There's plenty of practicing left to do before I can sit back and consider myself a perfect undertaker! Why, I expect to live to be a hundred!"

A month later I learned that he was dead.

Now, whenever I think of old Doc Turnbull, my eyes dim with tears. He was such a fine person. The two of us got along so well together that I like to think that it was only an accident of birth which prevented us from being father and son. Yes, I loved that old man; and if there is such a place as heaven, I know that he's there.

There is little more to be said about the years I spent in prison. For the most part they were dull, each day exactly like the one before, with routine blunting the memory, fortunately. Contrary to the accepted idea of scratching off the days and even the half-days on the calendar, I did no such thing. Prisoners—I think I am safe in the generalization—prefer to forget about time. Their terms seem to pass more quickly if they do not keep themselves conscious of it.

But if, because I have given so little space to my life in prison, you get the erroneous impression that I did not miss so much, remember that while I paced back and forth across twelve feet of cell, radio made its initial appearance in the American home; motion pictures were greatly improved and, at length, made to speak; and Harding, Coolidge, Hoover and Franklin Roosevelt rested their troubled heads on White House pillows. Yes, and much more than that. Came the boom times of '27 and '28, the stock-market crash and the subsequent depression. Lindbergh flew to Paris, Byrd to the Polar regions. European governments were overthrown. Women's skirts grew shorter and longer and then shorter again. Henry made a lady out of Lizzie. Buildings were erected higher than the Woolworth. Fashion decreed that even portly matrons bob their hair. Indeed, the very map of the earth changed during those eighteen years!

Prohibition gave birth to rackets, put teeth into gangdom and lined their pockets with money—before Roosevelt's administration decided to balance the budget. Dillinger played hide and seek. Hauptmann died in the Chair. Bridge became the nation's pastime. Hitler removed his corporal's chevrons. O'Neill managed to get some of his plays produced and Sinclair Lewis tapped out a book or two. Gertrude Ederle swam the Channel. Garbo demanded screen credit. Ice-boxes were made to freeze without ice, stoves to burn without gas. Dollar bills grew smaller in size as in purchasing power.

To this very day I have not seen the George Washington Bridge, the Holland Tunnel to Jersey, or been inside the Music Hall. I did manage to catch a glimpse of the towering Empire State, but only from a great distance.

One day the warden sent for me and when I came into his office he showed me his desk calendar. I saw that it was 1937 and September and a Tuesday.

Then he gave me a good cigar, asked me to sit down, and talked to me for a long time.

The next morning, I walked through the prison gates a free man, rather timidly blinking my eyes at a strange world.

The first thing I did when I got out was to take a train for Ithaca. I was fully cognizant of the fact that I no longer had connections there. Doc Turnbull was dead and so was Mrs. Michaelson. However, there was nowhere else to go and, had I not been so determined to find out the truth of things, I really believe I would have turned about-face and begged the Warden to take me in again.

Here I was, penniless almost and without a friend, dead set on finding out about something that had happened fully eighteen years before. But, although it appeared a foolish notion and utterly pointless, I found myself irresistibly drawn to the scene of the crime. Of course I realized that if the police, lawyers and the private detectives I had hired could unearth nothing, it was vain of me to think that I might succeed where they had failed. Nevertheless, I bought my ticket for Ithaca.

There was one emotion I had which authors have described truthfully. Even after several hours, when the novelty of freedom was wearing off, I imagined that people were staring at me. It was decidedly an uncomfortable feeling and I felt very guilty. I had all I could do to assure myself that I had a right to liberty and that I was now once again as much a part of the social scheme of things as anyone else. But eyes continued to bore little holes into my back. Heads that turned, I was sure were turning to stare at me.

Then I realized that it was my clothes. My shoes were prison-made and a size too large. My hat and stiff collar were hopelessly out of date. Therefore, although the train was just pulling into the station, I decided to wait in Ossining until the next one came along. I had a little money—about forty odd dollars—and a small clothier's shop across the street beckoned to me.

"Yes? And what can I do for you, sir?"

"I want almost everything."

"Ah! The works?"

"The works."

"Come this way."

And half an hour later I emerged, my appearance altered. Though the forty dollars represented all the money I possessed in the world, I had spent sixteen of it. Anything was better than being stared at.

Coming back to my home town after so long an absence brought a mist to my eyes. I thought of Odysseus in Homer's epic, returning to Ithaca and Penelope. I remembered the poem well because we had been forced to study it at Ithaca High. Well, I was returning to Ithaca, all right; but I had done no wandering, certainly; and there was no Penelope weaving and waiting for me. That death shroud had been finished years and years ago.

There weren't many changes in the station, I noticed as I stepped from the coach. There was a fresh coat of paint on the long row of wooden freight warehouses; and the bricks of the waiting-room had lately been sandblasted; but that was all.

I walked up State Street toward the center of town. Ithaca had grown. On many blocks which, in my time, had been devoted to homes, were stores. Of course, many of the older markets and shops were familiar to me, but State Street, as a whole, was disappointing.

Ahead of me stretched the main thoroughfare, bordered on either side by restaurants, two motion-picture palaces and department stores. Only when it curved sharply up the hill toward the Cornell campus, was it familiar. There, scattered beyond the few garage buildings, were houses I knew. People I had once known lived in them.... But no. Probably not any more. More likely they had retreated before the expanding business area to the still lovely portions over-looking the lake.

As I neared the corner where my store had been, I felt a stranger, excommunicated, forgotten. The faces milling around me, going in and out

of the markets, were strange faces, and somehow I imagined that they looked at me aggressively. I went along, half-expecting at any moment that someone would recognize me and call out my name. But no one did.

It was then that I clumsily stumbled over a little boy who was squatting at the curb, rolling some toy or other near the edge of the sidewalk. I picked him up, made certain that he was unhurt, and assisted him in dusting off his sailor suit.

"You owe me a soda!" the child shrilled pompously. "You knocked me down and now you'll have to treat me, mister."

I patted him on the head and started to walk away. The little fellow followed me closely. "Pay up or go to jail," he declared.

"All right," I said quickly. "Come along."

I took him by the hand and continued toward the store. Its metamorphosis was complete. The front of the building was a solid mass of show-window, in which were neatly arranged books, perfumery, tobacco-humidors, soap and cameras. Placards announced "special" luncheons, sales on toilet articles and giant malted milks. In one corner of the window, unobtrusively printed on a little cardboard cut in the shape of a mortar and pestle, were the words: "Prescriptions Filled By Experts." A huge neon sign above the show-window kept spelling out:

THE GREAT EASTERN DRUG COMPANY

"You can get swell ones in here for a dime, mister," the little fellow told me as he drew me up to the expensive black and silver soda fountain. "I'll take a frosted chocolate," he commanded the youth in the neat white jacket who came to wait on us. "And don't be stingy with the whipped cream!"

The clerk grinned and then turned to me. "And what will you have, sir?"

"Me? Oh, I don't care for anything, thanks." As the young man started away, glass in hand, I called him back. "Is there anyone here who can tell me where I'd be likely to find a party named Tom Murphy?"

"You mean Mr. Murphy, our store manager? You'll find him at the prescription counter in the back. The crippled gentleman with the dark

moustache."

I followed his finger and immediately recognized my former assistant. This *was* a stroke of luck. It had been a long-shot, my asking for him. I had had no idea he worked there.

"Here's the money for the soda," I told my diminutive companion. "I've got to see someone." I slid a quarter along the counter and made my way to the back of the store. I heard the child's words of thanks, muffled by his noisy sipping at a soda straw.

Tom Murphy did not look up as I approached. He was busy checking over some figures on a sheet of wrapping paper. The only radical change in his appearance was the moustache which, obviously, he had cultivated to lend him a professional air. He looked much older, naturally. When he had worked for me he had been only seventeen. That would make him thirty-five.

"Hello, Tom," I said quietly.

Slowly Murphy lifted his eyes from the paper to a level with mine. He frowned a little and I could tell that he did not know who I was. "You are acquainted with me?"

I laughed. "Tell me you don't know!"

"Can't say I do. But your voice sounds...." He stopped suddenly and leaned forward to inspect me more closely. Recognition dawned and the pencil dropped from his fingers. "Why ... why ... Mr. Thatcher! I ... I...."

I am positive that it was fear I read in his eyes although I can't imagine why he should have been afraid. We had always been the best of friends. Maybe he felt as though he were standing face to face with some ghost; but more likely he suddenly remembered what it was I was supposed to have done. Murder is a terrible crime and the people who commit it are not looked upon as human beings—no matter how much their action might have been justified. The taking of a life—unless it be during wartime, making the deed not only legal but noble as well—is an action which at once destroys both friendships and hates. People neither love nor hate murderers. They don't even feel sorry for them. They treat them much like Murphy treated me that day in the store. Like a freak.

I smiled disarmingly. "That's right, Tom. I guess I've changed a lot. I'm getting on in years, you know. But can I have a word with you?"

His lips trembled a little. "But ... but I thought that.... When did...?"

"This morning, Tom. I've finished down there."

"Come on into the back room."

I knew that he was reluctant to leave the front of the store. Maybe he was afraid to be alone with me, I don't know. If this were happening to me now instead of a few weeks ago, I wouldn't be at all surprised. Seeing the crude pictures of myself in the newspapers, I suppose I *do* look "haunted." But I vigorously deny the press insinuations that I have a criminal face, merciless eyes and an unmistakable brutish skull formation. The prison experts all agreed that I look somewhat weak with my oval-shaped head and pointed chin.

The thing I wanted to find out from Murphy was if there remained anyone in town who had known Anita. I explained to him that I was trying to find out more about the whole affair. Murphy puckered his brows in thought. "Let me see, George Garrett!"

"Garrett? Never heard of him."

"Oh, yes. That's right. He moved here right after...." He stopped in embarrassment. "Say, Mr. Thatcher, I hope you know that I never wanted to testify against you at the trial. They made me do it. I...."

"I know, Tom. You couldn't help it," I said.

"And I never really believed you did it," he went on, trying to appear convinced. "I always thought she committed suicide. But maybe you'd rather not talk about it, eh?"

"No, that's all right. I want to talk about it. I suppose everyone in town thought I was guilty, didn't they? Things looked kind of bad, I'll admit."

"No, we never believed it, Mr. Thatcher. Honest we didn't. Even Cavender who used to be across the street said you got a raw deal. And you know how Cavender was. Even Leo Carpenter said you were innocent...."

"Carpenter?" I echoed. "When did you see him? I thought he went to Vienna."

"Oh, he was at the trial. Didn't you know?"

"No," I muttered. "I didn't."

"Well, maybe he was only there that one day. He left for abroad shortly after. He's writing books now, you know. Lives in New York six months a year and in Vienna the rest of the time. Doctor Fraser—you don't know him—says that his surgical data is very valuable."

"I heard he was writing books," I said.

"Funny you didn't know he was at the trial. I saw him right after they brought in the verdict."

To this day, I don't know why I pursued the subject. Something drove me on—a curiosity maybe, a desire to discover just what attitude a man would take whose former sweetheart has been allegedly slain by his rival. "What did Leo have to say?"

"He looked angry as the devil. He was cursing, as I remember. I heard him say to someone who was with him that he was positive they were convicting an innocent man."

"He said that?" I asked in disbelief. Although the doctor and I had never been anything but friendly to one another, it seemed strange that he should adopt that attitude after I had stolen his girl. There was something fishy about it.

"Is that all?"

Murphy scratched his head. "Yes, I guess so. The fellow who was with him tried to comfort him, I recollect. He said that you'd never see the inside of a jail; that your lawyer was sure to appeal and the decision would be reversed. The man said, 'Of course, if they find the body ... in that case it might be different.' Leo was getting into his car then. He said something that sounded like: 'They'll never find the body' and drove off, leaving the man standing there. That's all I know Mr. Thatcher."

"Thanks a lot."

"Can I do anything more for you? You know that if I can be of some...."

"No, I guess that's about all. Goodbye, Tom."

"Going to be around town again?"

"No, I guess not. But who knows?" We walked back into the store proper. I shook hands with Murphy and noticed that his hand was cold and his grip limp.

Before I left Ithaca on the evening train for New York, I strolled around to my little house ... or what used to be my house. From a distance it still looked the same as I had left it; but when I reached the gate to the front yard I felt my heart sink. There was a noticeable sag to the roof as though the supporting beams had been allowed to rot away. The paint on both the picket fence and on the house itself had peeled off, leaving bare, ugly patches. And it was unoccupied. A chipped enamel sign informed the passerby that the property was for sale or rent and that information regarding it could be obtained by telephoning the Mervin Real Estate Company.

It had been my thought to enter the place, asking permission of the owner in the event that someone was living in it. I would have liked to explore the house in hopes of stirring from my fading memory some dormant fact which had escaped notice. Then too, I would have welcomed an hour in the garden down by the lake.

But looking at it a moment longer, I suddenly felt sick. My store, like some fickle child, no longer knew its parent. My house, my wife, my friends were all gone, breaking the last connecting link with the town of my birth.

I withdrew the hand I had reached out to unfasten the gate. I turned back toward the station.

I will not mention where I got the gun because the pawnbroker who sold it to me was breaking the law and I don't want anyone to get into trouble on my account. My purpose in purchasing the pistol, I need hardly say, was to take yet one more life: my own.

There are some of you who hold that suicide takes a great deal of courage and some to whom it appears a very cowardly act. I am not in a position to

argue the point. I merely tell you that I no longer cared to live and the sooner I ceased living the better I would like it.

But I did not sit down and brood like some twentieth century Hamlet. I did not over-dramatize my plight. I only realized that I was unhappy, broke, without friends or family, and with nothing whatever to look forward to but continued mental depression. I had read that ex-convicts find it extremely difficult to find positions and, although I was a registered pharmacist, I had no references to show a prospective employer.

So what else was there for me to do?

If I'd been young, I would no doubt have tried to hold on. When I was twenty, life was precious and I thoroughly enjoyed being alive. But remember that upon my release from prison I had just passed my forty-sixth birthday. You will recall the day, for that was the night of the Hindenburg disaster.

I had given considerable thought to the subject of a suitable agent which would bring about my end. I did not want to suffer if I could possibly avoid it. I suppose that I could easily have managed to obtain some sort of poison but I ruled this out immediately. Only a physician or an apothecary can appreciate how terrible a death by poison can be. Of course there are any number of mythical concoctions which the writers of detective stories profess will result in instantaneous death. Well, maybe I'm wrong, but if such poisons exist or at least are stocked in drugstores, I have never handled any. The poisonous substances I have come into contact with in my work all entail a minimum of several minutes of intense pain while the drug stops the heart or eats away the organs of the body.

So I chose a gun.

I decided this while sitting in my tiny hotel room, just off Times Square. Looking around at the bare, cracked walls, the peeling plaster and the single, dirty window, it struck me that this was as fitting a room for a suicide as one would be able to find. Still, I would be unable to use it. Since I would, of necessity, have to procure a pistol, I would hardly have enough money left to stay there another night. I would have to die in the park, or in some alleyway.

It was while I sat in that room, pondering the problem of where I might be able to get hold of a gun, that someone knocked on my door. I opened it and a girl stepped in, closing the door behind her. I gaped at her.

"Hello," she smiled.

"Hello," I answered her. "You must have the wrong room." I saw that she was well dressed and with a supple figure; her face, while not pretty, was pleasant and carefully made-up. "This is Room 264, you know."

"I know," she laughed, revealing white, though slightly crooked teeth. "Well? Aren't you going to ask me to come in?"

"You're in already," I observed. Then, for the first time in months, I felt the need of her—the need of any woman. Usually, in prison, this would sweep over me only once in a great while. It would last less than a week and then it would pass on, leaving me enervated. But now my fingers yearned for the feel of her and my knees grew unsteady. "Will you smoke a cigarette?" I asked, trying to keep my voice even.

She accepted one. My hand shook a little as I held the match. Puffing away, she sat down on the bed, close to my chair. I could smell her perfume and the faint female odor of her clothes. My head swam.

Of course I knew that she was a prostitute. Her presence in my room was merely an effort to solicit trade. But she was a woman. Mentally, I counted up my money. No, there would not be enough for this. The remaining few dollars would barely buy me a gun. I balanced the gun against the woman. I chose the gun.

"I like you," she murmured after a moment of silence. "But that, as Shakespeare says, is not the question. Do you like me?"

"I'm ... I'm broke," I stammered.

Her face fell a little. "Well, I didn't expect to find Rockefeller in here, you know. I don't ask much...."

"I'm sorry. I haven't a penny to spare. I won't have this room tomorrow," I confessed.

The girl rose from the bed abruptly and started for the door. In desperation, I got to it first and put my back to it. "Please don't go," I begged. "If you

only knew how much I want you to stay!"

"Sorry, buddy. I'm no charity worker. You've got to lay it on the line."

"Listen," I whispered hoarsely. "Don't you see? I haven't had ... haven't had a woman in eighteen years!"

She looked at me skeptically for a second; then a curiosity came into her eyes. "What were you, mister?" she asked. "Priest, prisoner or pauper?"

I told her.

"I've got a brother in stir. All right. I'm a sap for falling for your baloney. But make it fast."

"Thanks," I groaned, taking her into my arms.

"Hurry up."

In the morning I looked up Doctor Carpenter in the telephone directory. I located a CARPENTER L. MD with an East 70th street address and I called the number to ask the party's first name. It was Leo all right but he wasn't at home. The girl—informing me that she was the doctor's secretary—instructed me to call again at three o'clock. When she asked me to please leave my name, I hung up. I was afraid that Carpenter might not want to see me.

Thoroughly worn out, I walked along Eighth Avenue looking for a pawn shop. Two places, when I entered and asked to see a revolver, demanded that I produce my police permit; but in the third, the old fellow beckoned to me to follow him to the rear. He sold me an old .38 Colt automatic for six dollars and threw in a box of fifty cartridges to boot.

"Now remember, mister, I never sold you that gun, see? You never saw me before in all your life."

"I never saw you before in all my life," I assured him. "And thanks loads. I won't forget it in a hurry."

The old fellow threw up his hands. "Forget it! Forget it! Never mind remembering!"

Emerging from the shop with the pistol in my pocket, I found that I still had four hours to kill before the doctor would be in. I wanted to see him before I took the fatal plunge because there was ever so faint a chance that he might know something which would throw light onto Anita's death. Tom Murphy was not a person either to imagine or to exaggerate. If he was telling the truth, there might be some reason why Carpenter insisted that I was innocent. His remark, "They'll never find the body," might have meant no more than a disdainful opinion of the police.... But it was worth trying.

I don't think that I would have considered suicide had I in some way managed to solve the question that had been worrying my mind for so many years. Even if I had discovered myself guilty. For if I *had* murdered Anita, it must have been done in a moment of insanity, during which time I could not hold myself responsible for the deed. I loved my wife. I had had nothing whatever to gain by her death. I had not insured her life. I told the insurance agents who had called this to my attention that, in the event of Anita's death, no amount of money could possibly compensate me for her loss.

I spent the next three hours in a movie, trying my utmost to stay awake. I no longer had enough for a hotel room, having given all but a dollar of the money remaining for the gun. Although sleep would have been welcome to me after the adventure of the night before, I reasoned that if I dozed off, I might not awaken in time to see the doctor. If I missed him at his home, it would mean a night of wandering the streets, of dozing in subways or sleeping in the park. Hence, I stayed awake by prodding myself each time my head drooped forward onto my chest. Also, I am afraid that I made a nuisance of myself by asking someone next to me the time every now and then.

Doctor Carpenter had an apartment in a neat, two-family brownstone house between Park and Lexington. Entering the tiny vestibule on the ground floor, I saw his name on a little white card under a brass bell. I rang and in a few seconds, a uniformed maid ushered me into a foyer.

"Is Doctor Carpenter at home?"

"Is he expecting you?"

I admitted that he was not.

"Then it won't be possible for the doctor to see you today. He's very busy in the study and left word that he was not to be disturbed. Why don't you telephone him tomorrow morning and make an appointment?" The maid was young and smiled pleasantly.

"But I'm a personal friend of the doctor's. I've.... I've just come in from out of town and...."

"Oh, I see. Well, in that case, if you'll give me your name, I'll take it in to...." She interrupted herself suddenly and bowed to someone over my shoulder. I turned and saw a woman entering the front door. "Good afternoon, Mrs. Carpenter. The man called about the rugs. I told him to call later."

The woman was veiled so that as she brushed past me, I could not see her face. "Thank you, Lily. Is the doctor in the study?"

"Yes, he is, Mrs. Carpenter. Mr. Miller just left."

The woman opened the door at the far end of the living-room and went inside. As in a trance, I moved after her. In my ears I could hear Lily's voice call sharply: "You can't go in there!" but I did not stop. The floor of the living-room was waxed and slippery and one of the smaller scatter rugs shot out under my feet. I recovered my balance and, as I was opening the door of the study, I felt the maid's arm touch my sleeve. I shook it off and entered the room.

Doctor Carpenter was seated at a large desk near a French door that led out into a sort of garden or yard. He had his arm about the waist of the woman who stood beside his chair. For a moment, as the sunlight glared in my eyes, I could not make out anything more than the two silhouettes. Then ... I knew.

Both of them looked up as the door clicked shut behind me. They had been talking; now they fell silent. The doctor slowly rose to his feet and Anita—for I was sure it was she—started back and stifled a little cry of fear.

"Mr. and Mrs. Carpenter," I said.

Just then the maid opened the door and looked toward the doctor for instructions. I saw him hesitate. I knew, of course, that he did not wish to be left with me and he opened his mouth to say something. Then he closed it

and his shoulders sagged perceptibly. In this attitude, he looked old and I noticed that his hair was iron-gray.

"It's all right, Lily. We don't want to be disturbed." The doctor's voice sounded hollow and dry. He seemed to be choking, almost.

"But the man about the rugs. What will I tell him when he calls?"

"Tell him ... tell him anything. And if anyone comes, have them wait outside."

"Yes, doctor."

As the maid closed the door behind her, I looked over at Anita. Somehow I couldn't get used to the idea that she was really there. It was like seeing a ghost in broad daylight. But it was the spectre who was afraid. Through her veil I could see wide, terror-stricken eyes.

I suppose that this story I am telling is disappointing because I am incapable of detailing or classifying my emotions. I do not think that this is my fault so much as it is the fault of the emotions. During the tense portions of my life they were never clearly defined and often I experienced many freakish feelings: combinations of two or three emotions at once. So far, I have given you only bare facts and left you to imagine the gamut I have run. Sorrow, fear, love and morbidity have all played important parts in my life. But—whether you choose to accept this statement or not—although I have often been very angry, I can't remember ever having hated anyone. And as I stood there in the study, looking across the room at the two by the desk, I did not nurse any hatred.

Of course I know that it sounds a bit thick. I certainly had every reason to hate them both, and the much-publicized fact that my pocket contained a loaded revolver seems to indicate that I went to the doctor's home prepared to commit a murder. Truthfully, I did not. The revolver, as I have already explained, was intended only for myself.

Well, if the doctor and Anita looked frightened and ashamed, I must have looked bewildered. Try to picture it for yourselves. Here was my wife ...

alive! For the past eighteen years I had been mourning her loss. I had over-taxed my mind in attempting to pierce the heavy cloak of mystery which had surrounded her death.

I didn't know what to think. Such a climax could not happen in real life! We were not characters in a book or in the movies! But, after the first shock of hearing her voice, I felt a great load lifted from my shoulders. The knowledge that I had not killed her was evidently the panacea for all my suffering. Soon, however, I began to recover my stunned faculties; I began to wonder....

She had been called, "Mrs. Carpenter" by the maid. Since she wasn't dead, where had she been? Why hadn't she come forward at the time I was arrested?

I was totally confused as I faced the two of them on that afternoon of September 9th. So stupefied was I, it was not until Anita began to plead with me and to pour out a tearful confession that I fully realized what a contemptible trick had been played upon me. I stood there stiffly as she tugged at my coat lapels and the picture became clearer gradually. I could see her sitting in the garden that evening many years ago. She was furious because she wanted me to sell the store and move to New York—which wish I had refused....

"Oh, don't you understand, Peter? I've always been in love with Leo! I married you, yes. I know I shouldn't have done it. But you caught me at a time when I was too angry at him to think! I liked you, Peter. Please believe that! Yes, I did like you a lot. But was it my fault that I never loved you?"

I glanced quickly at the doctor. He was slumped over his desk with his face buried in his hands. I could see the cords of his neck, thick and tight, disappearing into his wilted shirt collar. Sheets of typewritten manuscript had slipped to the floor unnoticed. I felt jealous of him; then, suddenly, a wave of pity for him drove off the first. He, too, must have suffered. He, too, must have been tortured mentally all those years I wasted away in prison. It occurred to me that it had not been his doing. *He* had not wanted me to pay for a crime I never committed. What he had been heard saying at the trial was proof of that. But Anita....

"Peter, you must let me explain! You've always been fair and I know you'll understand how I felt! I married you but I loved him." She pointed to Carpenter's lowered head. "I just couldn't stand being away from him. You know how that feels. You've been in love, haven't you?"

"I loved you," I reminded her tonelessly.

Yes, I had been in love with her, it was true. But she had died a long time ago. Besides, she was not the same. Time and the knowledge of her evil deed had aged her. There were gray threads mingling with the blonde that the hair dye had missed; there were little crow's feet at the corners of her eyes; she looked sallow, unhealthy, a lean caricature of her former self. The only familiar part of her was her voice. And that wasn't pretty either. How often had I heard her sob before!

"Now I can understand why you wanted to live in New York," I heard myself say quietly. My ears were ringing and my voice had the curious quality of seeming to come from a great distance.

"No, no! You mustn't believe that! I swear to you that there was never anything between Leo and me until after ... after...."

"Until after I was convicted of killing you?"

She dropped her eyes. "Please, Peter. Don't think that I planned that. I never intended that you should.... Do you remember the sleeping powder? Well, I meant to take it and I put it in my beer. But then I felt like swimming—you know how I used to swim off my grouches—so I drank what was in the other glass and I forgot to empty my own. I guess you drank the beer with the powder in it."

I said nothing. There was still a lot of explaining to be done.

"Well, I cut my foot on the sharp stones down by the lake shore. You know where I mean. You used to warn me about them. It was a bad gash and it bled a lot. I hurried to the house to bandage it. You were asleep, Peter. I guess it was the powder. I held an old dress to the cut to keep the blood from getting on the rug. Oh, I shook you and shook you but you wouldn't wake up! I wanted you to go for a doctor. I was getting faint and I was bleeding all over the furniture. Some even got on your clothes...."

I still said nothing. Hearing her confession was like living a scene from life I had missed.

Anita went on breathlessly. Her words tumbled out so rapidly that at times I could scarcely understand her. But I began to see her for the first time. I began to realize that there is more to a woman than a lovely exterior and that even a devil may wear wings.

"At last I gave up and went into the kitchen. I knew that there were no bandages in the medicine-chest upstairs, so I began to cut strips from my dress to bind up my foot. Finally, I managed to fix it. That's how the blood got on the knife! Oh, Peter, I didn't have any idea what would happen when I left you that night! Really, I didn't. I was so angry at you for being so stubborn and I missed Leo and.... Oh, can't you understand?"

She was bordering on the hysterical but I remained unmoved. Indeed, I was surprised at my own objective attitude. In the past, Anita's tears had never failed to impress me. Like a dog responding to his master's whistle, I had come running at the first sob. But not so now.

"Oh, I know I did a terrible thing when I didn't come forward at the trial. But I was so sure you'd be freed. After the verdict I would have come forward, Peter ... but I thought that if the case was appealed, the decision would be reversed! How could you have murdered me? I wasn't dead. Then, right afterwards, we sailed for Vienna." She paused to catch her breath. "Then, too, I thought that you might interfere, try to take me away from Leo!"

I looked toward my wife's lover. He had not moved nor had he put in a word. "How did the lamps get broken and the table overturned?" I asked.

She acted as though she hadn't heard me ... but I knew she had. "Oh, please forgive me!" she wept. "It's all over now! If I had even dreamed that leaving you would have brought all this!"

"How did the lamps get broken and the table overturned?"

"Peter, tell me you forgive me! It was all a mistake, I tell you! O, God, I know I've done a terrible thing! If only I.... Will you, Peter?"

I looked her squarely in the eyes. They were very dark blue now—almost coal-black in the pupils like a sick animal's. No matter what the world may

think and no matter what the psychologists theorize, in that moment I was saner than I had ever been before. No dramatic haze came before my eyes; no fit of anger lashed me to a fury. So calm was I, that she never saw me take the pistol from my pocket. I held her gaze and my eyes did not give me away.

"I forgive you, Anita," I said.

Then I pressed the trigger.

With the sound of the shot which echoed and re-echoed through the house, the doctor sprang to his feet. His eyes were almost popping from his head as he watched Anita slip to her knees and then drop limply to the floor.

"My God!" he moaned.

I can't remember much more than just that. Faintly, I recollect hearing the sound of feet running toward the room and the crash of the door being flung open. Also, I was conscious that there were many people pressing around me until I felt suffocated. But everything else is vague. Maybe the shell-shock malady came back for a spell.

Later on, I became aware of myself while riding down to police headquarters in a Squad car, flanked on either side by a burly plainclothesman. They did not seem to be paying much attention to me for they were talking among themselves as though I wasn't there.

"Right through the heart. He sure must have been close, too. Her dress was burned."

"Yeah. I wonder why he croaked her?"

"Oh, we'll get it out of him down at headquarters."

"Don't be so sure. I think he's a nut. If he ain't, he'll play like he is. Christ, I'm ready to believe he is, right now! Who the hell ever heard of knockin' anybody off before witnesses in the dame's own house?"

"Good lookin' babe, too."

"Naw. She was old."

"Well, we'll get a chance at this guy after the line-up."

The driver of the car, evidently having seen my face in his rear-view mirror, called back over his shoulder. "Hey, boys. The guy's all right now."

With that, the detectives turned to me at once. One on either side, they started to fire many questions. "Why did you kill her, Johnny?" "Was that your rod we found on the floor?" "What's your name, anyway?" "What was the exact time you did it?" "Where do you live?" "Ain't I seen you some place before?"

"Yes," I answered, "I killed her. Only not then."

"Not then?" they chorused. "What do you mean by 'not then'?"

"I killed her, yes. But that woman has been dead for eighteen years."

They both stared at me for a minute. Then one of the cops described a circle about his ear with one finger. The other one nodded his head significantly.

Dig out your law books, all you students, all you judges, all you members of the bar. Dust off *Corpus Juris* and Blackstone and Wharton and the Constitution; try, if you can, to convict me. On the surface, it looks simple enough. Here I am, an ex-convict with a record of eighteen years in the penitentiary, and I have just shot down a woman in cold blood. Yes, it was in cold blood. I wasn't angry at her any more than I was angry at that German boy I killed back in 1918.

Come on all you prosecutors! My painfully young, court-appointed counsel challenges the world! His briefcase is empty but for three little slips of paper which, he claims, are enough to break any case against me. Maybe he is right. Who knows? Well, whatever happens, it no longer matters to me. Remember that only yesterday I intended to commit suicide? If the case is lost you will only be doing the job for me.

The District Attorney laughed at me when he visited me in jail the other morning. But I think he was rather worried. He secured the indictment easily enough ... although it might not have been so easy had my lawyer's plea to go before the Grand Jury been granted.

"You'll get the Chair, Thatcher," he threatened. "Better let me have your confession and I'll see what I can do about getting you off with a prison sentence. I can recommend leniency, you know."

"Oh, I did it, Mr. District Attorney. Why should I deny it?"

"Then you are not going to plead insanity?"

"I don't know what my lawyer is going to do."

"It'll be easier on you if...."

"See my lawyer."

I was really quite calm throughout all the days of questioning and interviews. I imagine that all the rigamarole I was—and still am—being forced through would be a great strain on a person. It was not much of a strain on me. I had been through it before; and while my first trial had me trembling and biting my nails down to the quick, this one lacked the resulting tension. It reminded me of the pinochle games I used to have with Mullins and Carter and the Sarge when we were all of us broke and without a sou and had to play for no stakes.

I have a late edition of a paper in front of me with my picture on the very first page. It isn't a very complimentary study of me for, you see, it was taken by a persistent staff photographer ... through the bars. But, if I do not appreciate the picture, the article accompanying it highly amuses me. The lead line reads: "While the alleged slayer of pretty Anita Thatcher paces the floor of his cell in the Tombs, brooding over the blood he is charged to have spilled, preparations are being made for the burial of his victim tomorrow afternoon...."

Brooding? What an imagination! I am not at all sorry that I killed Anita. Should I be? Except that I was born a fool, I have her to blame for what I have become.

In the courtroom this morning, the prosecution trotted out a score of witnesses in short order. By their testimony they placed me in the room where the crime was committed and at the time specified. This time, of course, the *corpus delicti* was established and the jury learned that I was seen committing the crime by one witness and found with the gun in my hand by others.

The District Attorney opened the case with a short speech that went something like this: "I have never seen a more open and shut case of murder in the first degree. We have everything—weapon, eye-witnesses and motive. It will be proved in this courtroom that the Defendant shot and killed his ex-wife because he was jealous of her marriage to one of the principals in the case. We will show you that the crime was premeditated, that the Defendant came to the apartment of the deceased woman with a gun in his pocket for the express purpose of carrying out his infamous plan of murder. We will prove to you, by means of expert testimony, that the bullet which ended the life of the deceased came from the gun belonging to the Defendant. After you have heard all the evidence in the case, there will remain to you only one alternative ... to return a verdict of Guilty."

When the District Attorney had finished, my lawyer got to his feet and said: "The Defense has nothing it would like to say at this time." His immature voice rising in the court caused a titter of mirth to circulate. Even His Honor concealed a smile as he rapped for order.

Then came the parade of witnesses, one by one. I recognized a chauffeur who had been parked before the doctor's door; the doorman from the building across the street; and a salesman who had happened to be passing as I entered the house. I heard Lily Pierce, the Carpenter's maid, testify....

"Then he followed Mrs. Carpenter toward the study. I ran after him and said that he had no right to go in there. He didn't listen to me. He pushed me away and slammed the door in my face."

"Did you go in after him?"

"Yes, sir, I did. But when I got inside, the doctor told me that it was all right and not to disturb him."

"I see. Tell the court, Miss Pierce. Did the doctor act as usual? Or did he appear nervous, excited, frightened?"

"Well, he didn't seem quite himself."

After many more questions, the State turned the witness over to my attorney for cross-examination. "No questions!" sang out the youth.

As Leo Carpenter, pale and haggard, took the stand, my lawyer leaned over and whispered to me: "You've noticed that I haven't cross-examined any of

the witnesses. But there's one fellow I may have to. I've got to establish the identity of the deceased, you know."

"Doctor Carpenter," the District Attorney was saying. "You saw the crime being committed?"

"Yes. I was there in the room," he replied. As he said this, our eyes met across the courtroom. I am sure that there was sympathy and understanding in his and the reluctant manner in which he testified on the stand seems to bear me out in this theory. Perhaps he felt that I had only taken just redress for my injuries by killing Anita.

When the State had finished with the witness, my own counsel approached him. The prosecution rested.

"Doctor Carpenter, what relation were you to the deceased woman?"

He hesitated for a brief moment. "No relation whatever," he admitted. "Anita was Mrs. Peter Thatcher."

I heard a murmur of surprise in the court and a few newspaper reporters tried to leave in search of telephones. Over the noise, I heard the next question.

"You were not the husband of the deceased?"

"No, I was not."

"In all the eighteen years you had been living together as man and wife you never married her?"

"No. How could I? She was Mrs. Peter Thatcher."

"She was the same woman who was known to you as Anita Thatcher back in the year 1919?"

"She is ... she was."

"Very well. That is all. Will the State allow the identification of the deceased or shall I call more witnesses as part of the Defense?"

"The State allows the identification."

There was a two-hour adjournment for lunch, following which the Defense resumed the floor. "Your Honor," called my boy gladiator, "I have here

three papers that I wish to offer in evidence. The first of these is an indictment dated in the year 1919 which states that the Defendant, Peter Thatcher, may be remanded to a court for trial on a charge of murder in the first degree. The victim's name: Anita Thatcher! The second of the papers is a certificate of conviction from the Tompkins County Court, Judge Foley presiding. It states that in the same year Peter Thatcher was convicted on a charge of first degree manslaughter for the killing of the same woman. The third paper is an affidavit from the Warden of the State Penitentiary at Ossining to the effect that Peter Thatcher, sentenced by the forementioned court, did serve the time specified and was formally released after having been imprisoned for eighteen years.

"Your Honor, under Article I, Section 6 of the Constitution of this State which says, in part: 'No person shall be subject to be twice put in jeopardy for the same offence,' I demand that the Court instruct the jury to return a verdict of Not Guilty for the Defendant. According to the law, the deceased was killed by the Defendant once already; and he was convicted and sentenced and paid the penalty for the crime by a prison term which lasted from 1919 up until the present year.

"The Defendant committed a legal murder. Or, have it this way, if you like. The Defendant, instead of committing the crime and paying the penalty, paid the penalty and then committed the crime. He cannot be tried on those charges again. In conclusion, I do not ask for clemency for the Defendant. I ask Justice!"

As I write this final portion of my story, which I trust has explained those features which the press have distorted, I cannot refrain from smiling a little. His Honor wore such a woe-begone look of bewilderment when my lawyer passed the certificates to the stenographer with a dramatic flourish!

"Let me see those papers, please," the judge demanded. The stenographer quickly handed them up to him. His Honor changed his glasses and, as he read them through, an unusual stillness pervaded the room. Really, I believe that of all the people who were crowded into the court, I was the only person who was not holding his breath.

Finally, after what appeared to be an eternity, the judge looked up. He cleared his throat several times, fiddled with his glasses, and then looked over toward the prosecution's table.

"Well, Mr. District Attorney," he said with a puzzled frown wrinkling his forehead, "what have you to say to that?"

As yet there has been no decision forthcoming. I know that the prosecution is tearing its collective hair, trying to find some way to get a conviction. My own lawyer is completely at ease. He left this morning for a few weeks of fishing in Maine, promising me that if decision is reserved too long, he'll apply for a writ of *habeas corpus*.

But I am not impatient to be free. There still remains the problem of where to go.

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